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Loudoun County Board of Supervisors, Business Meeting, Tuesday, October 21, 2025

Date	Tuesday, October 21, 2025
Place	Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length	6h 57m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8042>
 - Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8042>
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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-10. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:06:41] the fun part. Good evening supervisors, good evening student supervisors, good evening staff, and good evening Loudon. I'd like to call to order the October 21st, 2025 Loudon County Board of Supervisors business meeting. This room has a hearing loop. If you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those

[00:07:20] available as well. Please see the clerk to request one. Before I ask Mr. Crony or her student supervisor to join us with the Pledge of Allegiance and words of inspiration. I will say that today is my favorite day of the year. It's Youth in Government Day. We have 60 students from all over Loudoun County, mostly juniors and seniors, joining us in the boardroom.

[00:07:42] They've been here all day long learning about local government. I'd like to ask, not the student supervisors, but all other students in the room for Youth in Government Day to please stand up. Stand if you can get a picture of all of them so their parents can know they were here, and they have all been on television. Wave to the people on, wave to the good people. There you go. Take your time. All the people, well, their parents are watching.

[00:08:10] Their parents are watching. Thank you all for being here. Student supervisors, I'm going to go down. You all can have a seat. Now, you all like the waving part. We're going to go down and have all the

student supervisors introduce yourselves. First name only, please. How old you are in the school that you attend. We will start with the student supervisor from the Broad Run District.

[00:08:29] ma'am please my name is Tatiksha and I'm 16 and I go to Broad Run High School I'm Rylan I'm 17 and I go to Light Ridge High School I'm Aradhana I'm 17 and I go to Rockridge High School I'm Orlando I'm 18 years old and I attend Dominion High School I'm Shivani I'm 15 years old and I attend Riverside High School my name is Marissa I'm 17 and I go to Stonebridge High School

[00:09:03] My name is Danielle. I'm 15, and I attend Tuscarora High School. My name is Micah. I'm 16, and I attend Loudoun County High School. My name is Sue Hosney. I'm 16, and I attend Freedom High School.

[00:09:20] My name is Alexandra. I'm 17, and I attend Riverside High School. My name is Josh. I'm 18, and I go to Independence High School. Well, welcome all the student supervisors. Student supervisor—I'm sorry, Mr. Crony, would you like your student supervisor to do work for inspiration on the Pledge of Allegiance?

[00:09:37] Yes. Thank you, Chair Randall. Sure. Good evening, everyone. This week, many in our community are celebrating Diwali, the Festival of Lights, a time that honors the triumph of light over darkness and hope over despair. It reminds us that even one small light can make a difference, and that together, our collective light can brighten every corner of our community. In public service, that message feels especially meaningful. Each decision we make is an opportunity to bring clarity, understanding, and optimism to the people we serve as we stand for the pledge may we carry that same sense of hope and shared purpose working together with respect and compassion to reflect the very best

[00:10:16] of who we are student supervisor marissa how are you good how are you would you like to start the

[00:10:53] um the agenda reading the additions and deletions and go from there Closed session item two to consult with legal counsel pertaining to the negotiation of a collective bargaining agreement where public funds are being expended and where negotiations and open session would adversely affect the bargaining position of the county has been deferred to the November 6th, 2025 board business meeting.

[00:11:34] Are there any other additions or deletions to the agenda? Supervisors, just as an FYI, there was no reason. The only reason I put that on the next meeting is because this meeting is a long meeting, and we have three closed sessions, and we'd like to be home before breakfast.

[00:11:51] So that's why I moved that. No other reason. Any other additions or deletions? Seeing none. The proposed consent agenda is as follows. Item R1, proclamation to recognize October 2025 as Domestic Violence Awareness Month in Loudoun County.

[00:12:08] Item R2, proclamation to recognize October 2025 as Disability Employment Awareness Month and to recognize the 2025 Full Accessibility and Inclusion Moving Towards Equity Award winners. Item R3, proclamation recognize the Global Telangana Association.

[00:12:28] Item R4, Resolution of Commendation for the 30th Pastoral Anniversary of Bishop Patterson and Co-Pastor Dr. Patterson of the First Baptist Church of Sterling. Item 1A, Contract Award Sidewalk and Trail Design Services.

[00:12:45] Item 1B, Contract Award Site Civil and Parks Design Services. Item 1C, Contract Renewal, Capital Projects Program Management and Reporting. Item 1D, contract renewal, task order roadway and transportation design services for federal projects.

[00:13:04] Item 1E, Advisory Commission on Youth Bylaw Amendment 2025. Item 1F, Parks, Recreation and Open Space Board Bylaw Amendment 2025. Item 1G, proposed repeal to codify ordinances of Loudoun County, Chapter 888, real estate tax classification of property owned by surviving spouses of certain persons killed in the line of duty.

[00:13:32] Item 1H, proposed amendments to the codified ordinances of Loudoun County, Chapter 878, Transient Occupancy Tax. Item 1I, Design Endorsement, Arcola Quarters for the Enslaved. Item 1J, Design Endorsement, Courts Complex, Phase 6.

[00:13:53] Item 1K, Affordable Multi-Family Housing Loan Program, Application for Moorefield Station Apartments, item 1L, Affordable Multifamily Housing Loan Program, application for Stone Ridge Towns, item 1M, Affordable Multifamily Housing Loan Program, application for Overlook at Broadlands Apartments, item 1P, Space Strategy Update, Leesburg Government Center, item 2A, Appointments, Confirmations, item 3, Administrative Items, Report of October 21st, 2025.

[00:14:26] Item 7, proposed tax traffic, calming measurement in the Sterling Park community. Item 10, respond to board member initiative, East Beach Road Corridor Safety Study. Item 11, board member initiative, safety enhancement at the crosswalk on Portsmouth Boulevard at Middlebury Street, Lear Place.

[00:14:47] That was a lot of consent agenda. That was a big consent agenda. Good job. Very good job. Good job. Yay. That was a lot. I'm going to make a motion to approve the consent agenda, is there a second? Second. Who seconded the motion?

[00:15:05] Motion was made and seconded by Student Supervisor from the Ashburn District and Ms. Bricksman for the actual record, for the actual record. Discussion on the consent agenda, first of all, I want to say for item 1G, I really want to thank the, well, first of all, Bob Wurtz, but secondly, all the family members who came to us. It's been well over a year now to talk about the real estate tax classification for

[00:15:39] property owned by surviving spouses of persons killed in the line of duty. We should have done that a long time ago, and it took some of the families coming to us to remind us to do it or to ask us to do it and I really do want to thank you thank you for that anything else I will say in the end any other person's become the consent agenda supervisor or student supervisor from the Ogonkian district I thank you sorry thank you madam chair on the finance items that were passed on consent I just wanted to make a note that the bylaws for the committees

[00:16:17] and commissions are basically aligning the bylaws with state code as it pertains to remote attendance. The design endorsements that we endorsed tonight, again, at the full board, that's a new process where staff is coming to us kind of midway through the process of these projects for a design endorsement so that the board can be informed midway through when the projects are happening on on big projects um the moorfield station um attain affordable housing loan we are endorsing that and passing that tonight so that they can go through with that loan

[00:16:55] and in the clear springs um loan we did uh offer them a deadline extension so that they can bring in their a new application for their affordable loan and then lastly i do recommend that my colleagues look at the info items from staff from Mr. Wirtz as it pertains to adjustments in how we assess

certain types of property and so there will be some changes coming down the pike on that and we had a fairly lengthy discussion about it and maybe potential tax relief for some of our small business owners so I do recommend my colleagues look that over from Mr. Wirtz. Thank

[00:17:33] you Madam Chair. Thank you Supervisor or Student Supervisor from the Little River District. Thank Thank you, Chair Randall. Before my student supervisor speaks, I did ask for item number eight to be on consent, the speed management study along St. Louis Road in the village of St. Louis. I thought we, oh, did we? Remember, I pulled the other one. Okay. Supervisors, without objection, I will add item eight to the consent agenda. Okay, wonderful. Okay.

[00:18:02] All right, then my student supervisor has some things to say about the consent agenda. Your student supervisor does? Okay. Yes, Ryland, go ahead and read it out. I would like to thank my board members for supporting the recommendation for two pole-mounted speed display signs in St. Louis. This is a near-term solution which will improve safety for the residents.

[00:18:19] There will be long-term solutions recommended and presented to the community on December 3rd. I'd also like to thank the St. Louis Task Force. The task force was formed in 2022. The residents were dedicated to completing the St. Louis Village Plan and ensuring the character of St. Louis was preserved.

[00:18:35] Chair Randall and I had dinner with the task force members last December and thanked them for all their time and work. Today, the task force was officially dissolved in the administrative items report. So again, I say thank you to the engaged and dedicated volunteers of the St. Louis community.

[00:18:53] Wonderful. Supervisor or student supervisor from the Broad Run District. Thank you, Madam Chair. I would like to thank my colleagues for supporting the Affordable Multifamily Housing Loan Program application for more field station apartments.

[00:19:09] Increasing the number of affordable housing units in the county remains a priority of mine, and this project will add an additional 249 units. As the board's representative to the Disability Services Board and as a special education teacher, I enthusiastically support and sponsor the recognition of October as Disability Employment Awareness Month.

[00:19:29] I also offer my sincere congratulations to this year's full accessibility and inclusion. Moving toward equity award winners, Top Kick Martial Arts and Harris Cedar Brambleton, thank you both for prioritizing employment and supporting individuals with disabilities.

[00:19:45] They're a wonderful example to other businesses on how to provide inclusive workspaces. Wonderful. Supervisor or student supervisor from the Dallas district? Yeah, I just want to get clarity because somebody just mentioned 1N. that 1N was not on consent, so I just want to make sure that it is not.

[00:20:02] 1N, which is the Clear Springs. No, she just, no, she didn't, she did not, no, that wasn't, would she. That's not on consent, right? No. I want to make sure. Actually, Ms. Bricksman, you mentioned that. Yeah. You did, and.

[00:20:18] Okay, but it's not actually on consent. No, because. I voted against it. You voted against it. So it shouldn't be, but that's why I'm not sure. It should not be. You are correct. Okay, but I don't, Madam Chair,

I don't remember if it was in your original list, to be honest with you. I don't think it was, but I think Ms. Bricksman mentioned it, but I don't think it was on the consent agenda.

[00:20:36] And if it was, it should not have been, and we'll fix it if we have to get there. Wonderful. All right, thank you. All right, thank you. The only thing I will say, sitting supervisor, a consent agenda is the things that we together tonight will pass, because we have consent about the issue.

[00:20:53] There is no other questions. There are no other speakers on the issue who want to speak from the public. There are no staff that want to tell us anything else. Just anything on the consent agenda we have been looking at for quite a long time.

[00:21:09] Some things literally like over a year. And so these are not new items or things we know already. And so when we get to this point, we don't have to discuss them again. We put them on consent and they pass. The way I do the board, anyone who wants to take something off of the consent agenda that has been there, I just say yes to that, because why not?

[00:21:32] If anyone wants to put something on the consent agenda, there's a little bit more of a conversation. But usually I'll say yes to that, too, to be quite honest. That's what a consent agenda is. So I made the motion for the consent agenda. The student supervisor from the Ashburn district and Ms. Bricksman seconded the motion.

[00:21:53] Supervisors, all in favor, please say aye. Aye. Any opposed? That motion would pass 9 to 0. Supervisors, before I do my regional updates, I want to take a moment of personal privilege and say that Supervisor Caleb Kirshner is now formerly an old man, haven't had his 50th birthday.

[00:22:17] He is useless, fairly well dried up. Is that because I'm an old man or 50? We're not sure how he's going to be able to walk out of here on his own steam. What does that say for Mike Turner? Caleb, I would sing to you, but I like you.

[00:22:39] But I will say to you, happy birthday, Caleb. How'd you figure that out? Happy birthday, Caleb. Yay! We did clap for you.

[00:22:56] Supervisors, student supervisors, student supervisors, I'm going to do my regional updates. This is the chair's comments. Usually chair's comments are, if I have a point of personal privilege, I might do it then. But normally it's things I have done over the past two weeks since we're on the day. It's the last time that our regional, state, our national, or every once in a while, even international things that I have been involved with that some of the other supervisors may or may not have been involved with.

[00:23:23] And so I would do that now. Supervisors, on October 8th, we had the Council of Government meeting. This is really important. There is now a tool for displaced federal workers. We know that Northern Virginia has the bulk of federal workers in the country, and in fact Loudoun's has 24.2% of our adult population are either federal workers or federal contractors.

[00:23:51] We do not know how long this shutdown will keep going, but we are doing some things, and so we have a tool that came out of COG. It's housed at the Metropolitan and Washington government on their website. It combines technology with personalized, human-centered support from partners across the Washington, D. C. , Maryland, and Virginia area to help residents navigate career transitions, connect with other employers if they want to do that, get some up coaching, some help writing new resumes, reskilling your positions, that type of thing.

[00:24:29] so that if there are other jobs available for you in the private sector or the public sector in any other county, people want to help you with that. And so if you go to my Chair Randall Facebook page, that will be there. It will also be in my newsletter, but this does sit on the COG platform, so please check that out, and I will make sure to send that out one more time.

[00:24:54] On October 9th, I attended the first formal meeting that was in the Retreat of Leadership Greater Washington. It was held in the Accenture Building in D.C. This meeting was Economic Development and Workforce in the Region.

[00:25:10] The two speakers were Kenan McDuffie from the D.C. Council and Victor Hoskins, who is the Fairfax County, he's Buddy Riser's counterpart in Fairfax County. was really very interesting and very helpful in my next Leadership Greater Washington event, I think it's November 14th, but I will let you know, on October 9th, as chair of NVTa, the Northern Virginia Transportation Association, I sent a letter to the chair of the Transportation

[00:25:41] Planning Board to ask that they defer the I-495 Southside Express Lanes project to -- it's the Constrained Long Range Transportation Plan, or the CLRP. It's currently under review by NEPA, the National Environmental Policy Act, and we have asked that NVTa send a letter to TPB to ask that they defer that to early April, no sooner than April 1st. Mr. Turner, You are on TPB, correct?

[00:26:20] And that was accepted by TPB, right? That was accepted by TPB. So the 495 South Side Express Lane project, we know we will not see that until April, at least April 1st. If anyone has any questions about that, why that was a decision made, come talk to me.

[00:26:39] It will take longer than we need to spend right now. But if you do have any questions, I'm happy to go through this. This morning I attended and spoke at the NOVA Build PAC and NVBIA annual breakfast. I will say I spoke fairly strongly at that breakfast because there was a lot of legislators from the General Assembly there and I did not pull any punches about the fact that although we may and we do support attainable housing in Loudoun County and in Northern Virginia, We do not want to see any of our power for making our own land use decisions and zoning

[00:27:18] decisions eroded at the local level. I made the point that land use and zoning is very different county to county to county and so what happens in Fairfax or Prince William County may not happen in Loudoun County. Quite frankly I told them that we know what we're doing when it comes to land use and zoning and our staff knows what they're doing when it comes to land use and zoning and that's That's not true for every person who's in the General Assembly.

[00:27:42] And so I didn't really pull any punches about the fact that we need to keep our own authority for land use. So if you hear any General Assembly members say that I spoke about this and spoke in strong measures and strong words, I did. And I absolutely stand by those words.

[00:28:02] Because it's such a long agenda this evening, I do not have a voice for a cause this evening. time will be donkey love but that's literally literally literally now I have asked that they don't bring a donkey to the boardroom although donkeys oh stop it we are not we are not bringing a donkey in the boardroom although donkeys are allowed don't donkey horses donkeys and dogs believe it or not what is allowed but we're not going to bring a donkey no we're not we're not We're bringing a donkey in the boardroom.

[00:28:37] Well, they are companion animals. That's what they are, but we're not bringing one to the boardroom. That's just an executive decision. That's where we are. So we would do donkey love next time. They might bring some out and put them outside. So if you're just aching to see a donkey, you may be able to go outside and see one, but we won't bring one inside.

[00:28:58] So we won't have a voice for a cause this evening. Mr. Hemstreet, do you have any comments for this evening? Thank you, Madam Chair. I have four comments this afternoon. First, I'm pleased to announce that Loudoun County Humane Law Enforcement Officer Jen Henry has been named the Animal Control Officer of the Year by the Virginia Animal Control Association.

[00:29:20] This award is presented to an officer who has demonstrated overall excellence in the performance of their job. Officer Henry was recognized for her commitment and dedication to the field of animal control. Second, Loudoun County residents who would like to dispose of unwanted medications safely may do so at the next drug take-back day, this Saturday, October 25th.

[00:29:46] The Sheriff's Office is partnering with local police departments and the Federal Drug Enforcement Agency to provide several sites in the county where expired, unused, and unwanted prescription drugs may be discarded. Locations of the collection sites are online at [loudon.gov slash takebackday](https://loudon.gov/takebackday).

[00:30:04] Third, Loudoun County is offering teenagers a great opportunity to show off their musical chops. I'm talking about the Battle of the Bands, which has been a key part of the local music scene for more than a decade. Teenage musicians who want to showcase their talent on the big stage are encouraged to apply for the competition.

[00:30:27] In addition to prizes for the winners, competitors get useful feedback from a panel of expert judges. The deadline to apply is October 31st. Details are online at [loudon.gov slash teens](https://loudon.gov/teens). Finally, Loudoun County is looking for high school students to volunteer as pages for the up-and-coming November general election.

[00:30:46] We're out of school that day, so why not? All high school students are eligible to volunteer for a half-day or full-day shift. The duties are pretty light, greeting voters, keeping the voting area clean, and handing out I Voted stickers. Plus, you get a free t-shirt. For more information, visit [loudon.gov slash election](https://loudon.gov/election) pages.

[00:31:05] Those are my comments, Madam Chair. We will now address the following information item. Item I-1, Youth and Government Day. We invite Steve Torpy of Parks, Recreation, and Community Services to speak. Student Supervisors, Mr. Torpy is going to give his report, and then we're going to go to questions.

[00:31:27] And when it is items for Youth in Government Day or items regarding youth, I always go to the student supervisors before I go to supervisors. So if you have questions after Mr. Torpy does his presentation, you may ask them then. Hey, Mr. Torpy, how are you doing?

[00:31:45] Doing well. Very good. Doing well. Good afternoon, Chair Randall, board members and student board members. Youth in Government Day is, as you know, an annual opportunity for local high school students to meet and speak with members of the Board of Supervisors and learn about the complexities that are associated with what elected officials face on a day-to-day basis, and also get a chance to meet

with Loudoun County staff to learn a little bit more about what it takes to run the government here in Loudoun County, the local government.

[00:32:20] Also, we are always trying to create an environment where students get the opportunity to see that there is a real chance to serve your community and make your community better through local government and opportunities that they in the future might be able to join either Loudon or other local community governments so that they can make those impacts where they live.

[00:32:48] Today, the day started with lunch with available board members over at the historic Douglas complex. And thank you for the board members that were able to make it and their staff, as well as county staff. This was followed by a keynote by our own Chair Randall and a question and answer period.

[00:33:08] I know that after that was over, I had a chance to talk with Chair Randall and this is, I'm not gonna turn around, but this is to the students that were here today. I don't wanna speak for the chair, but she was very impressed with the questions and the banter back and forth that was going on during that Q&A session.

[00:33:28] After the keynote, there was a tour of the historic Douglas School Complex and of the new playground over at Douglas. This was led by one of our own PRCS staff who happens to be an alumni of Douglas High School.

[00:33:44] So that was very informative. I did have a chance to speak with a couple of the students after that. And then we did something different. There was a facilitated discussion about local government with many of the leaders from within Loudoun County staff that were up on a panel interview that was facilitated with closing comments then by our own Deputy County Administrator, Monica Spells.

[00:34:08] So again, I believe a successful day. And I do want to thank the Board of Supervisors for participating but also for the continued support to allow us to do this and bring students in to really show them the benefits and how serving your community and local government can make such an impact right here at home.

[00:34:34] There was obviously a lot of work that went into planning for this event and there is a long list of people that I could thank but I do just want to highlight a couple of folks that were on the planning committee. Ms. Kristen Garrett, Danielle Barger, Amy Rogers, Lacey Crooks, and John Christie from PRCS, and then of course Amanda Logan and Jennifer Grimm from County Administration really were the ones that put all of this together.

[00:35:03] So again, thank you for all the work that went into today and for your continued support about this, and I'll turn it back over to you, Madam Chair, for questions. Thank you, Mr. Tarpey. It was an amazing day. I do wonder, we have cookies on the dais right now?

[00:35:20] That's not normal. We like it. Can we only have cookies when it's Youth and Government Day? Because, Supervisors, I think we should vote that we have cookies up here all the time.

[00:35:36] That's what I think we should do. So, Madam Chair, Madam Chair, my understanding is the cookies are from Supervisor Kirshner's office in celebration of his birthday. Oh, man, I see. So if we make every board meeting his birthday, we can have cookies.

[00:35:53] Okay, that's a good one. Okay, you have a point of personal privilege? As far as I know, they're tasty and they're clean and they're healthy. Cali-free? Yeah. They're cali-cali. Drug-free. Ms. Umstead.

Ma'am, the student supervisor from the Leesburg District.

[00:36:11] Yeah, the student supervisor from the Leesburg District would like to ask Mr. Torpy a question. Sure. Mr. Torpy, could you let the board know how students can continue to stay involved with events such as Youth and Government Day? And are students allowed to serve on county commissions?

[00:36:28] So, very good question. Thank you for asking that. Yes, we do have one of the best ways for getting involved in the county's commission is the Advisory Commission on Youth has the Youth Advisory Committee that has representatives from each high school, and they help guide a lot of the discussions that go to the Advisory Commission on Youth that comes back to the Board of Supervisors.

[00:36:52] Typically, that report that comes back from ACOY is on the same day as Youth and Government Day, but we are talking about changing that so that that report comes a little bit before the budget process, so that if there's anything needs to be implemented, do that.

[00:37:10] But YAC, the Youth Advisory Committee, is a great way for students to get involved. - Thank you, Student Supervisor from Leesburg. Student Supervisor from the Ashburn District or the Ashburn Supervisor? - It's for me, Madam Chair. - Okay.

[00:37:26] - Mr. Torpy, what's the selection process for students that participate? - So we work with the schools, and there's an application process that the students fill out and then it gets vetted through and we try to get representation from across the county as much as possible and oftentimes reaching out to either homeschool or private schools, but a lot of it depends on the applications that come in.

[00:37:51] Great. Thank you. Student supervisor from the Sterling district. Do you have ways of advertising or spreading the word about opportunities like this so more students can have accessibility? Yeah, so actually I was having that conversation last night as well, and one of the things that I think we'll look forward to or look moving forward is not just working with the schools, but perhaps working with the Board of Supervisors who have newsletters and can get that information out a little bit more across the entire county.

[00:38:24] I will simply say that, yes, I do believe that this, I mean, these 60 young people in here, I don't, our young people are amazing all the time. The questions that were asked today and the conversation that was held today was absolutely top-notch.

[00:38:45] I am always, I am always so heartened by Generation Z. You all are absolutely phenomenal young people in so many ways. I don't think people my age tell you all that enough, to be quite honest. so great job and congratulations on being selected.

[00:39:01] Thank you, Mr. Torpy. - Thank you, happy birthday, Supervisor. - Everybody that comes to the table has to do that, how's that? Supervisors, we're going to, I want the student supervisors, I told them today that most of what we do is land use, and it is, and so I really wanted them to see two land use items, so I did move the agenda around a little bit today, only 'cause I want our student supervisors to see a land use item, have questions about a land use item they can ask that they can ask those questions um so i'm going

[00:39:35] to ask my my student chair to read all from here to there we will now address the following action items item 1n sorry thank you affordable multi-family housing loan program application for clear springs apartment phase one and two uh i will invite travis perlman and eric keeler

[00:40:04] housing and community development thank you good evening how are you good you're good very good

[00:40:37] okay yes uh supervisors i i do think that because this came this came to finance but did not go to tuck i think it's important that people see this the the presentation it may take a little bit longer but i think it is important for everyone to see it so staff thank you so much and we're going to do the presentation. Good afternoon, Chair Randall, board members, and student board members.

[00:41:05] My name is Eric Keeler. I'm the Director of Housing and Community Development, and I'm joined by Travis Perlman, our Housing Finance Development Administrator, who will now present the project. Good evening, Chair and Supervisors of the Board. Tonight, I'll be discussing the Villages of Clear Springs application to the Affordable Multifamily Housing Loan Program. The Affordable multi-family housing loan program adopted in 2018 provides subordinated loans to help finance the development of attainable housing financed with low-income housing tax credits hud 221d for

[00:41:39] insured mortgages or that complies with chapter 1450 of the county's codified ordinances per the program guidelines all units financed must be reserved for households earning no greater than 60 percent of the county's area median income or ami although the board has supported an exception previously for Goose Creek Village West Apartments to finance units reserved for households earning up to 70% of AMI. Since inception of the program, more than \$75 million has been awarded to finance 1,118 attainable units across 13 developments. Approximately 40%

[00:42:16] of funded units are either completed or under construction, with the remainder in the pre-development phase. This round will be the last round of the program as it has been replaced by the new attainable housing loan program adopted by the board on June 16th of 2025.

[00:42:34] Applications this round were due on June 2nd, the program staff review team or SRT convened for their first meeting at the end of June. The SRT is a multidisciplinary panel that includes staff from different departments. As is part of the standard review process, the SRT discussed the applications, identified questions for clarification and opportunities for each applicant to improve their application by bringing it more in alignment with the program's evaluation criteria.

[00:43:00] DHCD staff met with each applicant and provided them high-level feedback from the SRT and gave them the opportunity to revise their applications to make it more competitive in the review process. The applicant did submit a revised application, which is what was ultimately evaluated and scored in the second SRT meeting.

[00:43:19] DHCD staff then presented the application's feedback and SRT scores to the program's executive review team, or ERT, in August. Similar to the SRT, the ERT is a multidisciplinary panel that includes the directors from multiple departments as well as a board supervisor.

[00:43:37] The ERT makes a formal recommendation on each loan application to the Finance, Government, Operations, and Economic Development Committee. The FGODC considered the applications and staff in the ERT's recommendations for this application round last week at the October 14th meeting.

[00:43:55] We received four applications this round, including for Moore Field Station Apartments, the Villages at Clear Springs Apartments, the overlook at Broadlands Apartments, and Stone Ridge Towns. The

Villages at Clear Springs is a proposed two-phase multifamily rental development located adjacent to Evergreen Mills Road and Battlefield Parkway in the Catoctin Election District.

[00:44:17] The proposed development includes 180 one, two, and three-bedroom affordable housing units, or AHUs, reserved for households earning no greater than 30, 60, and 70% of the county's AMI. The units are proposed to be affordable for at least 40 years.

[00:44:33] The applicant's revised application has requested \$18.3 million to help finance the development. The development is part of the larger Villages at Clear Springs master development and is using the 180 AHUs to satisfy the affordable dwelling unit or ADU requirement of the larger master development.

[00:44:53] The Affordable Multifamily Housing Loan Program as well as the new attainable housing loan program cannot finance units already required to be provided under the county's ADU requirement. The ADU requirement for the Villages of Clear Springs Master Development is 106 units, and therefore only 74 of the 180 proposed AHUs may be financed by the county.

[00:45:15] Based on the \$18.3 million loan request, the corresponding eligible leverage ratio is 1 to 0.72, and the county's subsidy per eligible AHU is approximately \$247,000. The minimum leverage ratio for the program is 1 to 5.

[00:45:33] This is an aerial image of the project area. The proposed development is located south of Leesburg, adjacent to Heritage High School. This is an architectural rendering of the facade. The proposed development includes multiple three and four story multifamily buildings and will be primarily or exclusively surface parked with all units proposed to meet universal design standards.

[00:45:59] The department currently has approximately \$46 million available to support the program. However, staff anticipate a future request in the third quarter of fiscal year 26 approximately \$7.4 million to support the development of the former Ashburn North Park and Ride. With the approval of the loan application for Moorefield Station Apartments tonight and if the board approved this loan application for the Villages at Clear Springs and approves the potential future funding request for the Park and Ride development, it will nearly exhaust all available funds, leaving a balance of approximately \$1 million for the remainder of fiscal year 2026.

[00:46:37] This table includes a number of important data points for the four loan applications that are tonight's meeting agenda. I'd like to bring your attention to the eligible leverage ratio and county subsidy per eligible AHU columns on the right. You'll see the previously mentioned values of 12.72 for the leverage ratio and the approximately \$247,000 for the county subsidy per eligible AHU.

[00:47:01] I also want to note on this slide that the first application deadline for the new attainable housing loan program has passed on September 2nd of 2025. In addition to the four applications that were up for consideration tonight, we've received another four applications totaling approximately \$27 million in additional requests that are in the early stages of the review process.

[00:47:24] The table on this slide includes the same data points as the previous table. However, this is for all the loans that have been approved by the board. Again, I'll bring your attention to the leverage ratio and county subsidy per eligible ASU columns on the right. As you can see, the board has never approved a loan with an eligible ratio below one to one, nor with the county subsidy for eligible AHU above \$200,000.

[00:47:49] The SRT noted that many of the qualitative aspects of the proposed development aligned with the program scoring criteria, including providing deep affordability, innovative design and construction methods, and robust onsite resident services.

[00:48:07] However, the insurmountable weakness of the application, which was the primary reason for staff, the SRT's and the ERT's recommendations, was the failure of the application to propose to use county funds efficiently and in alignment with programmatic requirements, prior board precedent and staff expectations.

[00:48:27] The SRT scored the application 86.86 points, exceeding the program's minimum scoring threshold of 75 out of 129 points. The reasonable score was largely because the proposed development did address many of the qualitative elements of the program scoring criteria, as mentioned a moment ago.

[00:48:48] When the FGODC considered this item, They did support staff in the ERT's recommendation that the board not approve the loan application for villages at Clear Springs Apartments at this time. However, they did approve an alternate motion that recommended the board direct staff to waive the application deadline for the current round of the attainable housing loan program.

[00:49:06] So the applicant may have the option to submit a revised application and be considered in that program's current round. And staff have no objection to this alternate motion that was recommended by the FGOEDC. This concludes my presentation We're happy to take any questions that you have. Okay, just give me one second.

[00:49:23] Just do some business up here. Mr. Kirshner, you are not on the finance committee, so this is your district. And so were you following what was happening with this one since it's your district? A little bit, but I was assuming you were going to make a motion.

[00:49:39] I'm happy to make a motion, if that's okay. I don't want to if you want to because it's your district. Okay, all right. But before we get there, I love that. That's why you got all the way to 50 years old. Before we, I do need a point of clarification before we take your questions.

[00:49:58] You said one to five. So we were scoring this under the old criteria, not the one to three new criteria. Is that correct? Yes, ma'am. That's correct. Had it been scored under the new criteria, would it have changed anything? The score would have been different. We can't foretell what the scoring may have been because it is technically different.

[00:50:17] The leverage ratio has been relaxed a little bit. and the new program to a minimum of one to three, but even with that relaxed leverage ratio, the application still does not meet that new standard. - Okay, thank you. Supervisors, questions, I'll go to Mr. Kirchner first.

[00:50:34] Ms. Kirchner, do you have any questions? Supervisors, when we have an item like this, I always go to the district supervisor to ask questions first, and then before we stop, the vice chair and I are the last two to ask questions, and I do that because the chair and the vice chair, in my opinion, are servants of the board.

[00:50:55] We serve the board. And so just like if somebody comes to your house and you serve them first, we serve the board. And so that's why I have the chair and the vice chair ask questions last. I will say this, if somebody missed asking questions and I get to the vice chair, I'm not going to go back.

[00:51:13] So that's just how I do that, it just keeps things smoother. But Mr. Kirshner, questions? Yeah, thank you. So my understanding of the motion that's recommended by staff is to deny this and ask the applicant to come back with a, I guess, proposal with a better leverage ratio, more along the lines of our policy, correct?

[00:51:33] Yes, sir, that's correct. Okay. And the graph that you showed in here of the most recent applications had a much more favorable leverage policy, although not all of those were obviously in line with what I think our general policy is. They were far better than this, correct?

[00:51:52] Which applications are you referring to, supervisor? The previous loans that have been awarded? Yes, that's correct. Yes, they are. I think starting at 1 to 7.63. Correct. Most of them are well above what the leverage ratio for this application is.

[00:52:11] And this is 1.75, if I recall. 1 to 0.72, so not even 1 to 1. Okay. How long will, assuming, what's the turnaround time? If we accept this motion, what's the turnaround time for them to come back? So we anticipate bringing applications that are currently under consideration under the new program forward to the Finance Committee and the board for consideration third quarter, fiscal year 2026, so probably around January of 2026.

[00:52:38] And have we talked to the applicant in this? Is that their plan as well? Yes, we've been in constant contact with them. Actually, I just spent the last two days with them down in Richmond at a tax credit conference, so we've been having lots of discussions with them.

[00:52:54] And we anticipate that the application will come back. We'll be far more in line with what our policies are. Is that fair to say? We anticipate that? We hope for that? Anticipate until we actually see the application. Of course. But that's the discussion. All right, thank you. That answers my question.

[00:53:17] Student supervisor and supervisor from the Little River District. Okay, thank you so much. So my question is on slide 11. If you want to go to that slide. 11. Perfect.

[00:53:33] So in the far left corner, or in the far right corner, it says the executive review team did not approve two, three of the developments. Two, we just approved tonight on consent.

[00:53:50] So what's, right, one? I thought two. I thought Stone Ridge Towns and Overlook at Broadland's apartment. It was one. Did those ratios change? Is that why? I'm just curious. It says do not approve, and-- - The only project that was approved during consent was the Moorfield project.

[00:54:13] The other two were not approved. - Okay, can you read that? Are you sure? - Yes, I'm sure. - There were four all in total. One was approved in finance. This is one, and the other two were not approved. - Okay, perfect. - Yes. - Okay, so that was my clarifying question.

[00:54:29] And then the other question I have is, why only 40 years for affordability? What happens with that multifamily unit after 40 years? I want to know the answer. So the program does have explicit scoring criteria related to the affordability period of each application.

[00:54:51] And generally, the longer the proposed affordability, the higher the score for that criteria. Typically, for these types of projects that are financed with low-income housing tax credits, They'll go through a process called re-syndication, typically between year 15 and year 20 after they've been completed, which ultimately they apply for new tax credits, new equity gets put into the deal, they refinance the deal, and it gets extended for at least another 30 years.

[00:55:22] So it's pretty common that they'll be affordable for at least 45 to 60 years. Sometimes an applicant may take a project out of its affordability after the end of the affordability period, but in Virginia, particularly in the recent past, it tends to be affordable housing developers own these projects, they're in that business, and it's, they're, you know, financially incentivized to continue the affordability of that development.

[00:55:48] However, you know, given that the affordability period for our loan is only 40 years, without anything, there's nothing, there's no sort of restrictions or teeth that we have to ensure that affordability gets extended beyond the 40 years. Okay, so that's our policy, is 40 years for the rentals?

[00:56:06] So we have a minimum of 30 years for rentals. Okay, interesting. Okay, thank you. Thank you. Now, supervisor and student supervisor from the Algonquian District.

[00:56:24] Thank you. So what is the ideal leverage ratio, and did this applicant meet it? So the program's leverage ratio is a minimum of 1 to 5. As I've mentioned and as the board knows, we have adopted a new loan program that will replace this program called the Attainable Housing Loan Program.

[00:56:47] Through that, we made a variety of revisions to the program guidelines, but one of those things is we did reduce and relax the leverage ratio to a minimum of one to three to bring it more in alignment with the current real estate market. And so one to three is kind of a minimum.

[00:57:04] One to three is kind of what we're looking at. And at the 1 to .72 for this application, it is still far below that 1 to 3 minimum threshold. Okay. And then the Finance Committee recommended waiving the September deadline so they reapply.

[00:57:23] Yes, that's correct. Good. Thank you. Mr. Turner, you're good, right? And your student supervisor, and from the answer to this, you guys are good. Yes? You have a question.

[00:57:41] Thank you, Madam Chair, and Supervisor Chairs, Student Chairs. I'm struck on this application by the fact that the Moorfield application scored in 89. This application scored in 86.

[00:57:57] And yet this application scored in 86 with a 1 to 0.72 ratio. Now I'm baffled by what scoring mechanism would give a score of 86 when the ratio is 1 to 0.72. I talked to the applicant about this and the applicant said, we get much higher scoring with LIHTC funding if the county has more skin in the game.

[00:58:19] And that's what we were trying to do along the lines with the wax pool application. I don't remember the exact name, where they repaid basically the county loan within two years. Any thoughts on that? Any comments on that? Yeah, so in regards to the latter part of your question regarding referencing the wax pool project.

[00:58:42] And so that is the approach that the applicant has taken with this Villages at Clear Springs application. They have requested the county fill the entire financing gap for the development and has said that they will go out and pursue other additional funding sources to repay that loan.

[00:59:00] It is staff's recommendation that that is not the most efficient way for the county to use its funding resources. For instance, on the application that was approved tonight for Moorfield Station Apartments, we provided them, we have not financed the entire financing gap, but we have provided them sufficient funding to keep them moving forward and give them the confidence to pursue additional sources and do the work to get the project ready to be developed. And so we are not looking to fill the entire financing gap with these loans at this time, or at least we're not

[00:59:32] recommending that. Is it fair to say that your position is that following the applicant's approach of the county fully funding the gap and then finding outside financing to pay that funding back in an accelerated rate, makes sense from the applicant's point of view, but it shifts all of the burden of risk onto the county's shoulders. Is that a reasonable assessment? I would say yes.

[01:00:00] I think it's a practice that we need to stay away from and have the applicants come in with a more, you know, robust project, funding, leveraging of other sources and not just relying on the county. Okay, then let me go back to the first part of my question. How do you get an 86 with a 0.1 to 0.72 leveraging ratio?

[01:00:21] Yes, yeah, this was a question that was actually asked in Finance Committee last week. The multifamily loan programs, it relates to the weighting of the financial elements and the scoring criteria relative to the overall scoring criteria. So if you look at the, a lot of what I would consider the qualitative elements of the scoring criteria, so that could be number of units proposed to be affordable at 30% of AMI, the length of the affordability period, the experience of the development team, those factors account for probably 50 to 75 percent of the total points in the scoring.

[01:00:58] The financial component of the scoring criteria is the remaining 25 percent. And so because the financial piece is weighted so low relative to the other factors, ultimately that's how the applicant's able to get a reasonable score, but yet still underperformed quite significantly on the financial piece.

[01:01:15] that's great thank you all right supervisor is going to read a motion and then i will speak on the motion you're reading that but it's the same thing oh mike she needs a mic there you go i moved the recommendation of the finance government operations and economic development community that the board of supervisors not approve the loan application for the village at clear springs apartment in the requested amount not to exceed 18.3 million dollars from the housing fund or

[01:01:48] Housing Trust and direct staff to waive this is the September 2nd, 2025 application deadline for the Attainable Housing Loan Program and allow the applicant to resubmit the loan application to be considered under the current round of the Attainable Housing Loan Program.

[01:02:05] That was a motion from the Chair, is there a second? All right, so thank you for a second, Ms. Brixman. Okay, so let me just go through why that is, why my thinking on this. First of all, this motion does not approve anything tonight.

[01:02:21] It does not approve the Village of Clear Springs. It allows them to resubmit. The reason I thought this one was different was the exact thing that Mr. Turner was getting to. They had an SRT score that was 86.6%, well over the 75.

[01:02:39] The leverage ratio was the low, and it was very low. It seemed to me just to be a little disjointed, because every other application that had an SRT score that didn't meet the SRT score requirement also didn't meet the leverage ratio requirement.

[01:02:55] This one was a little more confusing to me, to be quite honest. And so the conclusion I came to was not to say yes, not to say no, but to allow them to resubmit and see if they can get closer to that leverage ratio of 1.3, because right now they're about 0.7, 0.72, and then, of course, the new leverage ratio is 1.3.

[01:03:23] I do understand anyone, any of my colleagues unease with this, because we are saying -- well, we're not saying yes, we're not saying no to an application that actually didn't meet the leverage ratio. I get it. I hear that, and I get it.

[01:03:39] But because it met the SRT score, because we changed the leverage ratio from 1.5 to 1.6, because we're not saying yes and they can come back and resubmit and we can still say no, because of all those things, I thought it was worth giving them a mulligan and let them try to see if they can get it right if we came back a second time.

[01:04:02] So that's why this very kind of strange motion. Now, I will also say this, and I said this at Finance, I am going to be very careful about this because I don't want this to become the same process we have for nonprofits where if someone's told no, they immediately go to a supervisor and have us say yes.

[01:04:21] I actually didn't take the meetings from the applicant when they asked me to take the meetings. I got this briefing from staff and made this decision while talking to staff because I didn't think it was appropriate to take a meeting from the applicant. However, based on all that I just said is how I reached this decision today.

[01:04:41] My only other question is this. Did I hear you all right? Did you say that a park and ride will also be considered for a loan application through the housing? We anticipate it, yes. So the board, as you recall, approved a development agreement on March 12th of 2025 with Enterprise Community Development to develop the former.

[01:05:04] And we do anticipate that they will come in for a loan request. It is reflected in that development agreement. For a park and ride. For the development of housing on the former Ashford North park and ride. Okay, now I'm with you. We are on the same page. We are together. I am with you. Thank you very much.

[01:05:19] I was so confused by that. Other supervisors who want to speak on this item, will you hand her your mic, please? From the Dulles District. Supervisor and student supervisor of the Dulles District.

[01:05:35] Thank you. Sorry. Yeah, I just wanted to explain why I didn't support this in finance and will continue not to. I understand the logic on the disparate scoring between the SRT evaluation and the financial evaluation. But to be very clear, the ratio that we're looking for is 1 to 3.0, not 1 to 1.3, 1 to 3.0.

[01:05:56] And this ratio is 1 to 0.7 something. So it is not even remotely close to the ratio that we're looking for. It's not like it's a little bit off, it's dramatically off. It's much more off than the other two applications, including one that was in my district, that we also considered at Finance and elected not to waive the deadline for to give the applicant another chance.

[01:06:22] So from my perspective, I think we need to be consistent with all three applications that are not moving forward. Because this leverage ratio is easily the worst of the three. I understand it's scored higher in other areas, but to me, the leverage ratio has to be the first thing we look at.

[01:06:40] And it's not just about, it is about finances, but it's also about our ability to fund other affordable housing applications. So, you know, a staff pointed out essentially what the lost opportunity would be should we approve something like this. So I understand the argument.

[01:06:56] All we're doing is they're coming back in for another round, but I think that's unfair to give them that chance not van meter who had two other applications and i think they're so far off whatever

they submit is nothing cannot be anything like this application and really should not be sort of a continuation of it it's going to have to be a new thing under a new process with new criteria so that's why i continue to not support the motion that's that the chair made thank you thank you mr latour student supervisor and supervisor from the algonkin district thank you um just a quick question for

[01:07:32] staff if the deadline were not waived for this particular applicant when would their next opportunity be to bring an application for village of clear springs so the new program technically has an application deadline it's the first monday in january okay okay and um i don't know if you know the answer to this question but um it's my understanding that if they had to wait till January it wouldn't preclude them from getting VHA funding the the issue is the

[01:08:09] progress of the project overall not piecing together other funding am I stating that correctly yeah the the rounds there are multiple rounds of funding throughout the year from Virginia housing these are this is not a nine percent competitive product that they're looking for that would have on just a one round a year so it you know it would take it they would step to a different round possibly um so that is a component but it's not like they have to wait a whole another year okay and i think we're also trying just to note make sure that we are having the

[01:08:43] board make decisions about every package and then move on to the next round after the decisions are made on an existing round and not have this happen again okay if i might uh through the chair ask our county attorney a question yes you may are we um putting ourselves at risk by setting a precedent here at all that you know van meter could come in and say you let them have the waiver of the deadline and we didn't we weren't allowed to have the way the waiver of the deadline are we setting any sort of precedent here by allowing village at clear springs to have a waiver of the deadline

[01:09:17] no i don't think we're sending any precedent each one of these loans stands on its own there's a okay thank you that's all i have thank you thank you leesburg district supervisor thank you madam student chair um before i heard supervisor liturto's comments i probably would have supported the motion but i find his comments to be persuasive but going forward since we seem

[01:09:54] to value this leverage ratio it's what we're talking about it's it's why this application didn't make the cut. Should we be increasing the weight of the financials to at least 50 percent instead of 25 percent or to 60 or 75 percent? And can we do that and remain in compliance with any federal or state laws or regulations? Sure. I will say the board did do that. So with the adoption of the attainable housing loan program, the new loan program in June, one of the changes

[01:10:33] that staff recommended and the board adopted was a new scoring criteria. One of the things that we tried to do was reweight and rebalance the scoring criteria so that both the developer experience, the affordability components of the project, the financial proposal are equally weighted among those groups. In our assessment, it will be hopefully a more comprehensive assessment of each application and we don't foresee there being any complications with that

[01:11:03] and pursuing any additional financing through other agencies. Thank you. Supervisor from the Cook-Octon District. Thank you very much, student Madam Chair. We are within the motion, correct?

[01:11:24] We are within the motion. Okay, so I'm going to support this motion, quite frankly, because I believe it moves us in the right direction, but I am going to, I agree with Supervisor LeTerno in many ways that seems a little bit unfair based upon some of the comments he made. But I also feel like when we're

getting far afield on these leverage ratios that we're using up the funds that we have dedicated to our objectives on housing.

[01:11:52] And so the truth of the matter is I think this board is going to want to come back and do more. If we had stuck a little close to our leverage ratios, I think we would be in a lot better shape as far as that fund goes. So those are my concerns on the overall picture. But in terms of this application, giving me an opportunity to come back, I think moves us in the right direction, but certainly not ideal.

[01:12:12] Thank you. So, first of all, I don't know that the leverage of that, your light's on for yourself. I didn't know if that was still on for you. Thank you, Madam Chair. So I sit on the evaluation executive review team, and these discussions are generally, I won't say pro forma, But the staff does such a good job that the conclusions are pretty easy to arrive at.

[01:12:41] And I believe this is the first time we've had four applications in one round. That's correct, right? Okay. So this is the first time we've had four applications. We are astride two completely different systems, one of which changes the leveraging ratio, which is a key variable. And keep in mind, I completely understand Supervisor Turner's point, but the top score was an 89.

[01:13:05] this score was in 86. The other two scores were well below the 75 minimum threshold for scoring. And so I think the conclusion was that because this score was over the minimum threshold and so close to the awarded application that it warranted to give this single applicant a little bit more consideration because their score was so high and try and address the leveraging ratio. I think it's entirely possible they will not get the leveraging ratio back to one to three but I think their high score and the other department made it worth the to get that made worthwhile to give them the effort

[01:13:44] I think staff has done a terrific job here these were two highly reputable developers with a long track record of development in Loudoun County and we had four applications for the first time we're worried about having the the pot of money that we fund this program out of being hit so hard in one shot, that has unintended consequences that are difficult to anticipate.

[01:14:07] So it was kind of a perfect storm of change that occurred on this application cycle. But bottom line is, I think staff has done a terrific job on this. I think once we get through this transition period, things will settle down and the turbulence will kind of go away and we'll be on good stead, but I think staff's done a great job.

[01:14:25] I will freely admit that I got -- I spoke with the developers and probably should not have as the chair points out not because it was in any way inappropriate but because we were in such a state of flux that I opened up the door and what I did by asking a question was increase the turbulence rather than decrease the turbulence my apologies for that to staff and I won't make that mistake again but all in all I think we've got all the pieces in place to have a very solid program as we have had and I think going forward we're going to do just fine thank you thank you So I'm going to understand yet respectfully disagree with my colleague from the Dulles District.

[01:15:02] As Mr. Turner just said, the SRT scores for the one that we approved was 89.71. The SRT score for this one is 86.86. The other two are both under the leverage ratio and under the SRT scores.

[01:15:17] And the SRT scores, I do believe, are actually probably the most important score. and they came in at, well, I wouldn't know what they came in, 67 and, what was the other one? I lost it, 67 and 59. So because we are between two programs, the outgoing and the incoming, because they hit such a high score

for the SRT score, because we're not saying yes, we're saying go back at it again and see what you can do with your leverage ratio.

[01:15:53] I think we are sitting, for one time, because this is the only time we're going to be in flux between the two programs, we're sitting in a different place. And I do not believe that we should let the perfect be the enemy of the good.

[01:16:09] We may have a good application here. Gosh knows we need attainable housing in the county. We need it very, very badly. And so to say that although we have an application that had a pretty high SRT score, we're not going to let them take another shot at it, it just doesn't make any sense to me as much as we need attainable housing.

[01:16:32] I'm also not as worried as everybody else up here about using the funds that are going into this account. We're putting these funds in here for a reason, to help get attainable housing. We're putting these funds in here to help get attainable housing and so if we use it for when if if this hits our number and we use it for the and we use it for that purpose that's not the issue with me that's not the issue with me at all and so you know I was the one that made both motions to do a 0.5 cents on the tax rate to put the money in for the attainable house and we we

[01:17:10] We are woefully behind other places, other localities, and working through our housing funds and getting attainable housing in this way. And so I'm not bent up about using the money.

[01:17:26] It's there to be used up. And we'll see what this applicant will bring us when they come back again. If they hit it, they hit it. And if they don't, they don't. but this is the last time we will have somebody or any applicant straddle the line between 1.5 and 1.3, and this is the only time we have an applicant hit one number so completely, yet not hit the other number.

[01:17:48] So it does seem literally fair to me and reasonable to me to do this at this time. So I made the motion. I believe Ms. Bricksman's seconded the motion. All in favor, please say aye. Aye.

[01:18:04] Opposed? That motion will pass 7-0-2 with Mr. Letourneau and Ms. Umstead, so the Dulles District and the Leithbrook District, voting against the motion. Thank you all very much. Ah, cool.

[01:18:22] Student supervisors, the motion's just passed, but you watched that, and you heard that, and you got all the information. Supervisors, push yourselves back from the dais. Dead serious. Push yourselves back from the dais.

[01:18:41] Student supervisors, including the student county administrator and the student county attorney's office. One, do you have any questions? Because I'm going to let you, you guys are about to vote on this item. So do you have any questions for staff? Where'd staff go?

[01:18:57] Come on back. Come on back. And by the way, you did not wish Mr. Kirshner a happy birthday. So you got to come back anyway, because you missed that. Say happy birthday. Okay. Student supervisors, do you have any questions on this item?

[01:19:15] For the staff, haven't heard the entire discussion. Students, you know what? You know where they are. We have a question. That is the little river district. What is the leverage ratio? It's a really good question.

[01:19:32] It's kind of a confusing metric. So when we use the term leverage ratio in the context of affordable housing loans, and particularly for a local government like Loudoun County, We're talking

about the amount of county funds, the amount of funds that the county's putting forward into a project relative to all other funding sources that an applicant is bringing to the project.

[01:19:57] So when we say a leverage ratio of one to five, we're saying for every one part of county funds that we provide, we require an additional five parts of non-county funds to help support a project. Thank you.

[01:20:15] Student supervisor from the Little River District. What is the composition of the SRT score? How much of it is financial and how much of it is qualitative? Yeah, so I think for this program, the Affordable Multifamily Housing Loan program, the overwhelming majority is qualitative aspects related to the development concept.

[01:20:39] So it could be the affordability that's proposed. It could be the type of construction and design. It could be the experience of the development team. the financial component is probably about 25 to 45 percent of the total points for the scoring criteria. Thank you. Thank you. Student supervisor from the Sterling District. How is your SRT score related to your leverage ratio? Sure. So the leverage ratio is an explicit scoring criteria and the overall scoring criteria. And so there's a specific item related to the leverage ratio

[01:21:19] that gets scored. I think it's maximum of three or five points out of a total of the 129 total points. So it is a scored item, but it makes up a small portion of the overall total score. Thank you. Student supervisor of the Leesburg district. So you mentioned the optimal ratio you want is roughly one to three or one to five, that kind of range. And the issue that what you're currently on is 12.72. I see two approved from previously awarded loans where there's one that

[01:21:53] is one to 2.62 and one that is one to one point or there's one which is one to 2.62, one which is one to 1.53 in there. So those are below your optimal 1 to 1.3. I don't know how the SRT score relates to those but those are below your 1 to 1.3. So those are approved. Yeah those that's absolutely correct they are below one to three they are below one to five and they were approved clearly those are just two of I think what I say 13 plus applications that improved by the board

[01:22:29] so yes there has been precedent before to approve loans below the one to three or one to five leverage ratio but it's not something that staff would recommend thank you you got to call for a okay so so the the boat is on the motion and the motion was to deny it but let the application have another and that the applicant have another round at trying it again so call that's the motion you need a second on your motion okay wait wait wait is that motion fine with you yes okay need a second on your

[01:23:07] motion okay does anyone second the motion um then call for the vote okay all in favor say aye all against it's okay to say not like you like you mean it's okay so if you were for that you have them raise your hand so you can see okay raise your hand if you are for the motion and then if you are against the motion is it undecided no it's not undecided because the supervisor from

[01:23:42] the of this yeah they didn't vote yeah and so you have to ask them are they abstaining oh all those that abstain from the vote are you abstaining there was a 7-2 vote again okay no that was a 6-3 it was a 6-3 vote 6-0-3 it's it's two abstaining two against no just 6-3 two abstained and two are against oh you you again okay that's that's close vote so so then you have five that said yes yeah five four that said no and two that abstained okay

[01:24:21] I know it's 10, but we have two people down there who are voting. So did that pass? It does pass. It does pass. Hit that gavel. That gavel, that passed.

[01:24:39] Woo! You're adjourned? No. But I will say, those were excellent, excellent questions, Supervisors, those were excellent questions, excellent questions, and it passed, but those were great questions.

[01:25:01] Student Supervisors from the Leesburg District, good catch. Good catch, yeah. When are you running for office, young man? All right, now you can go. Now you're good. Now you may go. And I'll say happy birthday one last time. All right.

[01:25:16] The next item. Take a microphone. And this one? No, this one. So you're saying? Okay. you saying okay um we will now address the following action item item item 1-0 village of st louis deferred forgivable loan program um we invite ernest brown and scott finchham of general services and johnette powell and eric keeler of housing and community development there you go

[01:25:55] good job mr crony do you need the do you need any um information on this item you do not you you want to go right to a motion you want to go right to your student supervisor wants to read a motion all righty is it on purple paper up here yes okay all right i move per the recommendation of the finance and government operations and economic development committee that the board of supervisors authorize staff under arch action three of the st louis village plan to develop a

[01:26:32] st louis deferred forgivable loan program for whole house water treatment systems funded with local, non-federal funds as presented in the October 21st Board of Supervisors Business Meeting Action Item and return to a future Board of Supervisors Business Meeting with a draft program, guidelines, and cost estimate to implement a program.

[01:26:52] I further move that staff include in the topics to research for program consideration a provision for a three-year maintenance plan provided by the installing contractor of an approved whole house water treatment system. Second. Second. The motion is made by the supervisor from the Lewis River District, so she gets to speak first.

[01:27:12] So let me say what you say is you may speak on the motion. Supervisor, you may speak on the motion. Thank you, student chair, student supervisor chair. Okay, so the Finance Committee approved the development of a St. Louis deferrable, forgivable loan program on consent.

[01:27:35] However, the program did not include any maintenance or ongoing operation by the licensed contractor. So this motion that my student supervisor just read includes a three-year maintenance from the licensed contractor in the program concept.

[01:27:55] So we're waiting for staff to come back to us with a program concept, which would include how this might work with a nonprofit, because a nonprofit would be executing this, and also what contractors will be going with and the potential three-year maintenance program.

[01:28:18] So it would come back with an estimate and the program concepts, and this is because when I went door-to-door in St. Louis, I met some residents who had systems, who had water systems in their home that were not maintained.

[01:28:38] Some of the water was purple, and they were not able to kind of maintain those systems. Maybe they didn't learn how to operate them. So this provides some level of assurance that these systems

will work and will operate correctly once they're installed.

[01:28:56] Thank you. Thank you. Just before we take a vote on this, would any one of you like to just give for our student supervisors just a very quick discussion on how we got here in St. Louis and why maybe St. Louis water has been an issue and just how we got here.

[01:29:19] Thank you, Madam Chair. Thank you, supervisors and student supervisors, student chair and student vice chair, and happy birthday, Supervisor Kirshner. Thank you, sir. I would say that Chair Randall probably knows the history of this particular village better than most, But fairly high level, this is one of our historic villages.

[01:29:47] It was historically an underserved community, and a lot of the development, particularly in water and wastewater, were not provided or afforded to this community. So the village plan, as part that was just completed, had addressed the water issues.

[01:30:06] So their questions were whether or not the water was able to be consumed and whether it was actually safe to use for washing and things of that nature. St. Louis already does have a wastewater treatment system in place that was provided to them as a community system.

[01:30:23] And so that addressed their wastewater. So, again, this is a historic village, and so through that particular village plan, there was a recommendation to dig deeper and investigate solutions for their water quality issues.

[01:30:40] So, there was conversation about creating a, what they call, community-wide communal water system. There was not enough interest in that particular community to bring that to the conversation. That's kind of like what you all drink when you go home at night. You have Loudon water that provides water through the tap.

[01:30:56] All of these homes are on wells and the well water that is being used there, there's a lot of minerals and other elements that are in that water that cause a lot of staining and discoloration and odor for that water.

[01:31:13] And many people do not have the immediate resources available to treat that because they can be quite expensive. So we use the area medium income of 80% to be able to provide assistance to those members in that community that may not have the resources to put in a pretty extensive wastewater or water treatment system for the whole house.

[01:31:36] Did I get after that question, Madam Chair? I think you did a great job. Thank you for that. And I do want to thank staff and Mr. Crony's office as well. So we have been working on this for a very long time. As Mr. Brown said, this has been kind of an overlooked, underserved community for, well, forever.

[01:31:54] And I did make it my mission when I came to this position to make sure that every community and every person in Loudoun County was seen and heard and at the very least had safe drinking water and to get rid of privies and all those types of things. And so we are doing that community by community by community.

[01:32:12] And I really do thank staff and appreciate it. I also thank everybody from St. Louis who has been attending the meetings and a part of this discussion. It's been a long time coming, but we are getting it done. Mr. Crony, do you have a closing? By the way, Mr. Crony is doing my closing.

[01:32:28] Can my staff bring me my resolutions, please? Thank you. Mr. Crony, do you have a closing? I'm going to have my student supervisor do just these two. A working whole house water treatment system will address the community's immediate needs and improve the quality of life for residents.

[01:32:45] There were significant concerns regarding odor, color, which causes staining, taste, which causes well water undrinkable. Residents that I visited were not able to use the water for daily household needs, such as cleaning or washing. My motion is to include at least a three-year maintenance agreement with the contractor to ensure the system is operating correctly to ensure the availability of safe and adequate drinking water supply for St. Louis residents that qualify for the loan program.

[01:33:10] Wonderful. The motion was made by the Little River District. supervisor and student supervisor and it was seconded by myself and student chair all in favor of the motion please say aye any opposed that motion will pass 9-0 student supervisors did you have any issues with that quite with that item you all good with that item we want everybody drink good water they drank it all in that's what you say when you turn that's the kind of joke you certainly say when you turn 50 years old you drink it all in that's the most dad

[01:33:45] joke ever, that motion will pass unanimously. Supervisors and student supervisors, we're going to do proclamations now, resolutions now. Okay. We have three resolutions. Um, the first one is, um, I'm not sure if we're going to do a mis-order or not, but we have one for October's Domestic Violence Awareness Month, um, uh, Samantha Clark from Laws, um, Lisa Jones from Silence No More, and I believe, do we have women giving back?

[01:34:16] Are you here, too? They are here, too. Okay, wonderful. And Mr. Turner, Vice Chair Turner, you're going to join me down front for that. And then we have a proclamation for the Fame Awards. That is Mr. Glass is going to join me down front for the Fame Awards.

[01:34:38] And then Mr. Crony, what's wrong? What are we doing? Okay, you can go get one. Mr. Crony has a resolution for the Teledanga Association. So student supervisors, the way this works is I, as county chair, because I have every person in the county as my constituent, I'm down here for all the resolutions, which means you're coming with me for all the resolutions.

[01:35:02] For the other resolutions, the student supervisor who is with that supervisor will be coming down to the front today. So, can I first have Ms. Glass? Is everybody here for you today? Are you guys, you believe so? You sure? You see them? Can I have everyone for the Fame Awards down front, please? Let's go.

[01:35:25] We're just going to scooch down some.

[01:36:11] Good to see everyone. Some people are on this side, too. There we go. Thank you, Madam Chair.

[01:36:27] Whereas 2025 marks the 80th anniversary of National Disability Employment Awareness Month, NDEAM, originally established in 1945 to recognize the contributions of individuals with physical disabilities.

[01:36:51] In 1962, the word physical was removed to acknowledge all disabilities. And whereas NDAM is led by the U.S. Department of Labor's Office of Disability Employment Policy, this year's theme, Celebrating Value and Talent, recognizes the contributions of workers with disabilities to our economy and highlights their achievements, both past and present.

[01:37:17] And whereas employing individuals with disabilities strengthens businesses, enhances workplace diversity and inclusion, drives innovation, and improves competitiveness. Providing reasonable accommodations for new employees and those returning to work after illness or injury also helps retain valuable talent.

[01:37:38] And whereas the talents and contributions of all individuals, including those with disabilities, are essential to building an inclusive community and a strong economy, every day individuals with disabilities bring valuable skills and perspectives to the workforce.

[01:37:55] And whereas the Loudoun County Disability Services Board established the full accessibility and inclusion Moving Toward Equity Fame Award to recognize businesses that demonstrate a commitment to hiring individuals with disabilities, supporting their career development and fostering inclusive, supportive work environments.

[01:38:16] And whereas Loudoun recognizes the Disability Services Board 2025 Fame Award recipients, Top Kick Martial Arts and Harris Teeter Brambleton No. 230, Top Kick Martial Arts strives to create an open and welcoming atmosphere where everyone is given the opportunity to thrive.

[01:38:39] Harris Teeter Brambleton is committed to hiring employees with disabilities, citing the belief their workforce should represent the entire community. Now, therefore, be it resolved that the Loudoun County Board of Supervisors does hereby proclaim October 2025 as Disability Employment Awareness Month in Loudoun County and urges the community and local employers to support the value and talent that people with disabilities bring to our workplaces and society.

[01:39:13] Good evening, Chair Randall, Supervisor Glass, members of the Loudoun County Board of Supervisors, Disability Services members, and the members of our community.

[01:39:31] I am Evelyn Ingram, and I serve as the chair of the Disability Services Board, and I'm honored to be here tonight. Recognizing October as National Disability Employment Awareness Month shines a spotlight on the talents and skills of millions of Americans with disabilities in the workplace.

[01:39:48] This proclamation formally acknowledges our county's commitment to breaking down systemic barriers and sends a clear message to our residents with disabilities and their families that your participation in the workforce is valued, sought after, and essential to our success.

[01:40:07] This proclamation shows that we're committed to economic strength because hiring qualified, talented people with different abilities, and that's your word, different abilities, fills labor shortages, drives innovation through diverse thought, and strengthens our local community.

[01:40:30] Our Board of Supervisors are committed to fostering an inclusive environment, and as chair of the DSB, I would like to thank Chair Randall and the members of this board for their unwavering support, and we are profoundly grateful for your annual acknowledgement of National Disability Employment Awareness Month.

[01:40:47] I would like to urge all businesses in Loudoun County to embrace the competitive edge that disability inclusion provides. Thank you. In 2017, the members of the DSB talked about the need to support employment of people with disabilities.

[01:41:07] With the help of the Board of Supervisors led by Chair Randall, the Full Accessibility and Inclusion Moving Toward Equity Fame Award was created. This award honors businesses and

organizations in Loudoun County that demonstrate a strong commitment to full inclusion of people with disabilities in the workplace.

[01:41:27] It is my honor to say congratulations to our 2025 winners of the Fame Award, Top Kick Martial Arts and Harris Teeter Store 230.

[01:41:45] So first of all, thank you to the Disability Services Board for all that you do. And you're right. The word "dis" is kind of almost a disrespectful word, so I do always often say differing abilities or different abilities because just because somebody doesn't have some of one thing doesn't I mean, they didn't have more of something else, right?

[01:42:05] So we may be different, but there's no reason to diss anybody, to be quite honest. That's why I tend to say that. I also want to say there has been a lot of discussion about DEIA. And what I think we're actually discussing is the D and the E. And we forget the I and the A.

[01:42:24] Inclusion and accessibility is so important to have for people of our differing ability community every single time. And so Loudoun County has leaned in very hard to making sure that everyone has opportunities, feels that they are treated with dignity and respect.

[01:42:44] I will also say, and he might still be here. Mr. Torpy is still here. Mr. Torpy has been just a champion. I don't have my glasses on, so I cannot see it. There you are. He has been a champion of making sure that our parks, recs, community services, Our spaces have spaces for people who have different abilities.

[01:43:03] If you go over to the new Ashburn Recreation Center, people want to get in the pool and they can't walk. There is a lift that will lower you down in the pool. We are working on making sure that our parks and our trails, the people who might be in a wheelchair.

[01:43:19] We are working every day in Loudoun County to be the most inclusive county for people with different abilities in Virginia. we could not do it without without you and without the board so thank you so much and congratulations congratulations congratulations to our winners this evening good evening I'm reminded of those hair club for men commercials when I say I'm not only an instructor I'm also a client I began at

[01:43:56] top kick as a student along with my three kids simply looking for a place to move to learn and to grow when inflation hit I told our VP of operations miss Paula that I would need to cancel my membership even though I love taekwondo instead of letting me step away she and our owner master John Cassidy offered me a free membership and invited me to join the team that single act of faith opened the door that I didn't know I needed today I teach taekwondo help with after-school pickups support summer camps and document standard operating procedures so our systems work for everyone I did not mention earlier that I am a person with disabilities I say that for now because when

[01:44:34] accessibility and inclusion are woven into everyday practices people are not defined by challenges we are discovered for our strengths inclusion does not have to be expensive it does not need a spotlight it does not require anyone to disclose anything it looks like assuming good intent while naming harm choosing curiosity over judgment and training ourselves in conscious communication through our safe space principles so every interaction signals safety respect and possibility it looks like teaching through the ears the eyes and the body so learning reaches

[01:45:09] every student most of us will experience disability at some point in life when we plan with that truth in mind we tell people you belong here thank you to the disability services board for this honor and to our community for showing what care can accomplish when doors open and people are seen potential meets opportunity and hope becomes action this is the spirit that guides us at Topkick Martial Arts, which is why we live through this purpose statement. We empower human potential and spark the adventure of self-discovery. We make the world a better place every day. Thank you.

[01:45:45] Thank you for the award here tonight. From on behalf of Harris Teeter, we really put an emphasis on hiring, developing people, bringing a whole group of individuals together. I myself was a recipient this year but it makes me proud as a leader of someone of a Harris Teeter that has 138 employees that they all are a welcoming group that will take everybody from their backgrounds

[01:46:23] what can they bring what is their perspectives creating that positive morale that really just goes not only throughout the store but in the communities we serve so I have one of my rock stars back there that came to uh see it today he's been a great addition we love uh taking on giving people opportunities it's our job as leaders to find what is going to be the best scenario for them to thrive uh and it makes us proud when we see people like that flourishing in an environment um amongst uh the community so chris come on up buddy

[01:47:03] turner you want to join me please but everyone here for the domestic violence

[01:48:43] awareness please come down all the purple want to come down miss bricksman

[01:49:12] lots and lots of people come on down girlie what's going on your favorite girl how's it going everybody come on in i don't um where where where is there she is where's my

[01:49:42] all right um this is for domestic violence awareness and i have said to um samantha i've said to lisa i've said to um before you nicole acosta everyone who will listen that you know i will love the day that we put out of business um silence no more and we put out of business laws

[01:50:21] and we put out of business women giving back because the need's not there anymore when you listen to the stats and the numbers. You know we're a long way from that. So since we're a long way from putting you out of business, we're really happy and grateful that you're here doing the incredible hard work. And I say all the time in God's work that you're doing every single day. So I'm going to read the proclamation. I'm going to ask someone from Silence No More to speak, somebody from Women Giving Back to speak, and somebody from Laws to speak. All right.

[01:50:50] The Proclamation for Domestic Violence Awareness Month. Whereas domestic violence affects one in three women, one in four men, and one in two transgender or non-binary individuals in their lifetime, and is linked to nearly one in four homicides statewide. One in four. Harm is caused to thousands regardless of the race, age, sexual orientation, religion, gender identity, or socioeconomic status. And whereas the marginalization of certain groups in society, including undocumented individuals, transgender individuals, people living with

[01:51:25] disabilities, and people of color increase their vulnerability to domestic violence and whereas the 2025 domestic violence awareness month theme is with survivors always. Remind us that we must stand with survivors, listen to their voices, and work together to create safety, justice, and healing for all survivors. And whereas while progress has been made towards supporting survivors of domestic violence,

important work remains to be done including preventing violence before it starts, ensuring survivors have access to resources for

[01:52:04] safety, healing, and long-term stability. Long-term stability. And whereas Loudoun County partners with many non-profits such as Silence No More, Lost, Domestic Violence and Sexual Assault Services, Women Giving Back, and members of the Coordinated Community Response Team who are committed to providing resources and support to survivors of domestic violence.

[01:52:29] Now therefore be it resolved that the Loudoun County Board of Supervisors and Student Supervisors does hereby proclaim October 2025 as Domestic Violence Awareness Month in Loudoun County and encourages residents to become informed about the crisis of domestic violence, sexual crimes and sex trafficking.

[01:52:54] I do want to note that we have Loudoun County Sheriff's Office, Loudoun County Government here because we really are at this point, we are working in coordination at one time.

[01:53:12] There's not a piece of county government, our nonprofits, our faith-based, that are not working together to try to address this scourge of violence in our county. So I want to thank you all for being here. I'm going to first pass it to laws, and then we're going to go to women giving back, and then we're going to go to sign this no more.

[01:53:33] Thank you, Chair Randall and members of the Board of Supervisors. We are always so grateful to have the opportunity to stand in front of our community. and to, number one, thank you for your support and for recognizing that October is Domestic Violence Awareness Month, and it is our opportunity to say that domestic violence does happen here in Loudoun County.

[01:53:53] What I can say from our perspective at Laws is that in the last fiscal year, in 12 months, we answered over 1,200 hotline calls from this community, and we provided over 180 individuals, including children, 5,000, almost 5,000 bed nights of shelter That's people in our community who were not safe and needed care and shelter and support.

[01:54:19] And that says something. That says that people in our community are in crisis and are unsafe and need the resources for safety. Also at Laws, what we do is try to move people from crisis through safety to support and, like Chair Randall said, to stability.

[01:54:40] One of the things that stops people from being in crisis and from being unsafe is to make sure that they have the resources in their community, many of whom you see around this room standing with us tonight, are things like access to housing, access to jobs, access to child care, and all those resources that help them be safe and stable in their community so that they do not continue to be victims of violence here in Loudoun County.

[01:55:10] And Chair Randall said it so eloquently. It takes a coordinated community response. Everyone you see around this room together working to make sure that all of us are safe and none of us are victims. Because in a community, it's our neighbors, members of our faith community, our coworkers, people who go to school with us that are victims of domestic violence.

[01:55:34] It happens here and we all have a shared responsibility to make sure that it does not continue to happen. So thank you for this opportunity, and I'll pass the mic.

[01:56:00] - Women Giving Back. - Thank you, Supervisor Sains. We are in Supervisor Sains District, if you didn't know. But Women Giving Back, we're a non-profit, and I echo everything that Chair Randall said and Sam as well, that it is a multi-sector effort in order to tackle domestic violence.

[01:56:24] there are so many youth in this room and I just want to say it does start at your age and making everyone aware about dating violence and and what not to do and to do when the friend comes to you and so definitely keep advocating for more awareness and training within your school system as well because it is important that we're all educated at women giving back we serve about this year to date 3,000 women that came through our doors and majority of them have experienced some sort of violence whether domestic human trafficking sex

[01:57:01] trafficking and what I say is their dignity has been stripped from them and so we do everything we can to kind of rebuild their dignity and self-confidence it may seem like we're just providing clothing but we're providing a support system for a lot of the women that come through our doors and we do also do warm handoffs to organizations like laws and silence no more working very closely with survivors there's no roadmap to how to help guide a survivor into the next step but definitely permanent

[01:57:37] supportive housing supportive housing wraparound services is much needed for some of these families and then also a lot of therapy because the trauma that the kids experience in the home Just seeing the domestic violence that's taking place is lifelong, and it does take a lifelong healing to get over that.

[01:57:59] My name is Lisa Jones. I'm the founder of Silence No More Movement. Thank you, Chair Randall, Board of Supervisors. I'm really happy to be here.

[01:58:15] I'm the survivor of a sex trafficker, which was my father. So seeing this here means something. Before I say what Silence More does, I just want to take maybe a different route and say thank you. Loudoun County is showing up in a way I never thought I would see.

[01:58:34] I'm forced for training, bringing staff members. Loudoun County Family Services came to training with 24 staff members. I never thought that was possible. So I'm seeing growth in Loudoun County. I'm seeing businesses show up, and that means something.

[01:58:52] Silence No More Movement believes in relocating victims that are in trouble. Jobs, housing, but long-term support and belief. Outlets to be around other survivors so we can amplify those voices.

[01:59:09] And Loudoun County is allowing that. Board members are allowing that. Women giving back. Laws. So I couldn't be more thankful to be here saying this in front of you. I'm not asking for anything this time. I just really want to say thank you for Kenya to just show up.

[01:59:25] so that you know how to help effectively and safely. Detective Dupros, could you come over here, please? You have an award in your hand that you received from Laws a couple of nights ago.

[01:59:46] So I'd like for you to say, just on behalf of LCSO or law enforcement in general, and what you all deal with when you have someone who did you know was dealing with domestic violence, because you won this award for a reason. And I know that for this issue, it's so important to you and really all of LCSO.

[02:00:05] I'm gonna let you. Thank you. Yes, thank you, Chair. So the other night when I was speaking, one thing I didn't mention is that I think a lot of law enforcement officers are unfortunately influenced by things that have happened in their personal lives, myself included. My mother is a survivor of domestic

violence. She made a very brave act to leave her abuser in 1989. And if she had not done that, I would literally not be here today because it wasn't about four years later that I was here.

[02:00:33] So I say that to say that in all honesty, I think the reason why law enforcement does what we do on a daily basis is because we want our survivors to have a chance to have an advocate on their side when they are brave enough to come forward to make that statement.

[02:00:50] It is very difficult for them to have that type of bravery. It's very important that we offer them that opportunity to tell their side of the story, to believe in them, and then to offer them the appropriate services, Not just investigations and justice, but to make sure that they are safe, that they have the appropriate resources.

[02:01:10] That's why it's incredibly amazing to have organizations like Laws and other organizations that allows us to do a warm handoff and to make sure that our survivors have those things that they need, so that way they feel comfortable with going forward with the process. So at the Sheriff's Office, we are tapping into our resources.

[02:01:29] This award is not for me. It is really for the team. It is for the sheriff's office, it is for laws, it is for CPS, it is for all the organizations that help survivors. This is really just for those frontline workers. Thank you. And before we leave, Detective DeProse and I are going to take a picture together.

[02:01:47] Yes, ma'am. All right. Let's everybody take a picture first, though.

[02:02:37] Say, say, say.

[02:03:36] I'm going to put it right next to the flags.

[02:04:27] Is that what I understand? Very good to meet you, even though I don't get to talk to you much. Where do you live? Oh, outstanding. Where do you go to school? Tuscan. Where?

[02:04:42] Tuscan. Okay, great. Wow, that's a little bit of a try. Come down 15 and fight that wonderful traffic. Don't you want to see that road better? Yes. We're working on it. It's a big project we're working on. So tell all your residents, Supervisor Kirshner is doing everything.

[02:04:58] You need to keep that project moving. It's just... We have one more resolution. However, our student supervisors are going to be, unless they want to stay up here with us, they're going to be leaving us at 6 o'clock, and it's 6 o'clock right now.

[02:05:15] So I think many of their, either their parents are waiting or they are eking to go. Either way, we do want to say you guys have done a phenomenal job. You discussed, you voted, you did just a great job today. And so student supervisors, thank you, thank you, thank you so much.

[02:05:33] You know how to get a hold of all of us. If you need to, please reach out to us for anything you might need. We appreciate you, we value you, and I'm kind of awed by Generation Z anyway. So we will see you next time, unless you want to stay with us for this next resolution.

[02:05:49] And if you want to stay, feel free to stay. The next resolution will be Mr. Crony's resolution. So her student supervisor should definitely join us down on the floor. And should Madam Chair. Come on back down. You absolutely can have those.

[02:06:06] They're calorie-free, according to Mr. Chair, right? Yeah, I love it, too.

[02:06:11] Hey, my friend.

[02:07:06] How's it going? Hello. Thank you for being here. Thank you for being here. Okay, so who's reading this? The supervisor. Is he really? Your supervisor. Okay. Okay, stand right there. I'm going to look at the school over. I'm going to have you white.

[02:07:22] Is this on? Telangana. Is this on? Okay. Whereas... Do you want to do this? Introduce yourself. Yeah, if... Oh. Introduce yourself. I'm Rylan.

[02:07:38] Whereas the Global Telangana Association, the GTA, is a non-profit organization dedicated to uniting the Telangana community in its efforts to support individuals and families in need in Telangana and the United States, and whereas the GTA was founded to promote and encourage the advancement of the culture and traditions of the Telangana region of India by establishing a platform for cultural, educational, social, and developmental activities in Telangana and the United States, and whereas the GTA organizes a Batukama and Dasara event every year in Loudoun

[02:08:16] County. The 2025 event was held at Broad Run High School on Sunday, September 28th, and drew a large audience from across the county to celebrate the rich Indian and Telangana culture and heritage, and whereas Batukama and Dasara are celebrated together as they represent joy, strength, and cultural unity. These dual celebrations provide a powerful way to connect with traditions and foster a sense of pride in one's cultural roots. And whereas the accomplishments of the GTA are the results of the wisdom and guidance of its leaders and the tireless efforts and unwavering commitment of its many volunteers, now therefore be it resolved that the Loudoun County Board of

[02:08:55] Supervisors hereby recognizes the Global Telangana Association. So I just want to quickly say my student supervisor is awesome. Thank you for reading that. And yeah, I just wanted to recognize the GTA for the wonderful flower festival they put on every year. It has really become a community gathering and togetherness. The women, I enjoy meeting all the women, and you are the leaders of the GTA, which is fabulous. They do stacked flowers, so you get to view the beautiful stacked

[02:09:34] flower arrangements that they put together and then dance and just celebrate with the community. It really is a wonderful community event, so I really appreciate and just want to recognize you for doing this every year. So we'll go around and, I don't know, Senator Cannon, Srivastan, we'll start with you.

[02:09:51] - Thank you, thank you, Laura. GTA is a wonderful organization. I've known them for many years. I work with them regularly on many issues. They do excellent, excellent community work. and thank you, Laura, for recognizing their work and showcasing and doing this proclamation.

[02:10:07] Thank you. Yes, I did a commendation on the state. I was very, very, yes, yes, I did do the state, but they do excellent work, and there is a huge activity they do in Loudoun County, and they enrich Loudoun County extraordinarily.

[02:10:24] So again, thank you, Laura, for doing this at the county level. Thank you. - Anybody else want to say? - Thank you. Good evening, one and all. Thank you Supervisor Tecroni and Senator Conant Sinwatson and Madam Chair Phyllis Randall for this wonderful proclamation here from Loudoun County to the GTA, which is a non-profit here.

[02:10:51] As we've always been hand in hand in terms of enriching, helping out the community as well as bringing the community together in the Indian diaspora and helping out on a large scale as well. One of the things we would probably want to talk about today is maybe a request that I could actually put in favor of what the community needs as part of a civic center that we talked about a long time ago.

[02:11:20] So that's one of our requests. Probably we'll be able to bring that to fruition someday. And also in terms of ensuring that we have a school facility available for us every year as a thing.

[02:11:35] It's really hard to kind of get that from the schools every year. So maybe we can do some things. That's absolutely. Absolutely.

[02:11:57] Thank you. Thank you very much. Hello, everyone. My name is Ramo Munrathi. I am serving as a president for the GTA Washington, D.C. chapter, and also serving as a board secretary for the Stonehenge HVA.

[02:12:15] So thank you for the resolution for Lara and Chair Phyllis Randall. and my supervisor, Matt. And thanks for coming, Kanan, all the way. So thank you, thank you, everyone.

[02:12:33] - Sure.

[02:15:58] Come back, supervisors. We have public comments right now. Okay, we have public comments right now, and we will call the speakers.

[02:16:14] We have four speakers for public comments. What are you doing? We have four speakers for public comments. I will call them in this order. The first speaker is Sharon Buchanan who's going to speak -- she'll be our first speaker.

[02:16:32] Our second speaker is James Russell. Then we will go to the phone for Sarah Hussein Bazar and then we have one more speaker who came in. So the first speaker is Sharon Buchanan. Is she here? Are you here? Very well.

[02:16:48] Hello, ma'am. How are you? I'm here to discuss the topic of the dog away from home dog kennel.

[02:17:06] I want to say that this is very wrong. I do want to back up and say that I am a 33-year real estate agent. I've sold rural property in Western Lown for over 33 years. I know a little bit about what I'm talking about. This is being rushed through, and I don't know why.

[02:17:24] There are many inconsistencies and missing information from the application. I believe this application does not meet fundamental zoning requirements, such as well and septic needs, as well as untreated wastewater. I don't think these can be slated as conditions. ODW letter and requirements have not been submitted. I don't believe this can be conditioned. Septic characterization study and the AS and the SAP evaluation, I have not seen these. The apartment above the kennel or inside the kennel was not permitted by the county. No untreated wastewater use from kennel building was ever permitted. Wastewater into septic cannot be permitted into the current

[02:18:03] septic. I don't think these can be conditioned. That septic characterization study I believe needs to be a pre-requirement to the application. Loudoun land use is five acres minimum excluding a residence. This parcel is less than five acres and also has a residence on the property. It's not even agricultural. If approved this will absolutely set a precedence for rural Loudoun County that anyone can do anything they want without permits and once open for business will be approved regardless of

requirements and acreage. If approved I would suggest this is a non-transferable permit as promises and pledges were made by the owners. The figures within the

[02:18:43] GFA changes within the application. The kennel is 2,778 square feet, including an apartment that is 1,434 square feet. This is non-permitted apartment. I don't think it is clear where the employees work around the clock. Where does the staff use the bathroom? Where do the drains go? This needs to be verified by engineers. They cannot go into the septic and untreated wastewater for soap, chemicals, cleaners, and urine must be filtered. These questions have not been answered. The runoff directly affects the Western Hills Watershed Management Plan. The property is located in the

[02:19:18] CBPA watershed and the North Fork and Goose Creek watersheds. This has not been mentioned. The untreated kennel wastewater, as well as dog run waste, directly flows into the adjoining landowner's property downhill in county identified wetlands and flows into a creek. Where is the training building? I assume it's in the resident's garage. Ma'am, thank you. Your time is up. If you want to hand the clerk your comments, we can see all the comments if you want to hand them to your clerk. I've made 10 copies. Okay, that's wonderful. I have photos and site plans. Okay, you can give

[02:19:54] them on to the clerk. Thank you very much. This is in the Catocin district, is it not, Mr. Kirsten? This is in your district, okay. The next speaker is James Russell, followed by Sarah Hussein Bazar, followed by Robert Griffin. Good evening. Time and again, this board has told us that the genocide in Palestine is not the business of Loudoun County. A Palestinian who lives here might drive past the office of an arms manufacturer, but it's not the business of Loudoun County.

[02:20:26] A Palestinian might drive by a data center filled with servers utilized by tech companies that contract with the Israeli military, but it's not Loudoun County business. I'd imagine every Democrat on this board would endorse Abigail Spanberger in the gubernatorial race.

[02:20:46] She currently holds a seat in the Federal House of Representatives. Her biggest campaign contributor from the last race was the America-Israel Public Affairs Committee. But it's not county business. This county is represented in the House of Representatives by Suha Subramaniam, a freshman congressman.

[02:21:06] And in his one campaign, his largest campaign contributor was the America-Israel Public Affairs Committee. But don't go thinking this is Loudoun County business. This county is represented in the state senate by Russett Perry.

[02:21:23] Last year, her staff told a number of activists last year in a Zoom meeting that she believes the genocide in Palestine is not the business of Loudoun County or the Commonwealth of Virginia. We were all surprised to see State Senator Russett Perry visit Israel a month ago.

[02:21:46] We filled up her voicemail box. She hasn't returned the calls. We send her a bunch of emails. She hasn't returned any of them. But don't go thinking this is Loudoun County business. You have inherited from your settler predecessors a genocide fetish.

[02:22:05] You need to have in the back of your mind the capacity to kill an ethnic group for the sake of economic growth. This is standard. I'd been warning for months about the increasing terror of federal law enforcement against various immigrant communities.

[02:22:28] And now that it seems to get worse all the time, other than a whimpering from Briskman in the last meeting, we don't hear a word about it. Why do we want to kill Palestinians? Why do we want to terrorize our immigrant communities? The next speaker on the phone would be Sarah Hussein Bazar, followed by Robert Griffin.

[02:22:50] We have her on the phone? We do, don't we? She was there a little while ago. I know she was. Yeah. There you are. I didn't get the call. I'm sorry. It's okay.

[02:23:05] Good evening, board members. Good evening to the Zionists. Palestine is a local issue. While our government is in shutdown, senators on both sides of the aisle, with a vote 77 to 20, came together to approve nearly \$1 trillion in new military spending.

[02:23:22] That budget includes several items from AIPAC's wish list. Meanwhile, here in Virginia, park rangers in Shenandoah aren't allowed to charge visitors' entrance fee to the parks, and many federal employees aren't getting paid. But as long as Israel's military aid is funded with American tax dollars, who cares if all workers are paid?

[02:23:41] Part of that military funding includes \$50 million towards warfare technologies, AI and cybersecurity, housed right here in the data centers across our county. These centers profit while our local residents are left paying higher electric bills.

[02:23:58] The same AI technologies used to train warfare abroad are being normalized here, from surveillance to harmful features like AI-generated pornography that exploit our communities and children online. We're told there's a ceasefire. Yet since October 10th, Israel has committed over 50 violations and killed more than 100 Palestinians, including journalist Saleh al-Jafarawi.

[02:24:22] In the West Bank, while families harvest olives, Israeli settlers backed by occupation forces violently attack farmers. American journalist Jasper Nathaniel witnessed such violence this past weekend in Tormuz Aiyah, a village where 80% of residents are Palestinian-Americans.

[02:24:41] Meanwhile, 16-year-old Palestinian-American Mohamed Ibrahim remains imprisoned by Israel without contact with his family. Palestinians released from detention describe unspeakable tortures, from dogs raping them, to genitalia being electrocuted, to sterilizing our young men, a form of ethnic cleansing.

[02:25:00] Because the same corporations and politicians funding weapons in Gaza and the West Bank are the ones fueling violence in Chicago, funding ICE to tear families apart, and powering surveillance technologies used right here in Loudoun County. The violence, the technology, and the profit are connected.

[02:25:17] When American weapons stop, the genocide stops. Dowdeners are asking our local governments to divest from companies that are complicit in the Holocaust in Palestine. Justice for all, including Palestinians. Free Palestine. Thank you, Ms. Bazar. Thank you.

[02:25:36] Our last speaker is Robert Griffin. Good evening, sir. Good evening. I'm here to talk about several issues, but the Schumer shutdown.

[02:25:53] Have any of you Democrats talked to Senator Kaine and Senator Mark Warner? because it is a Schumer shutdown. The Republicans have voted, I guess, 12 times to open our government, and it's only the Democrats that are shutting our government down.

[02:26:11] And as to the data centers here in Loudoun County, I think a lot of that blame goes to the Democrats and to Biden, the wars in Ukraine and the war in Gaza. Yep, that blame goes squarely to their shoulders.

[02:26:30] They did nothing to solve those wars. President Trump has now pretty much brought peace to Gaza, to the Palestinians. And the Arabs, the Arab nations, have agreed to monitor and enforce that peace.

[02:26:48] And we know that there was a little skirmish in Israel or in Gaza this past weekend, but the Arab nations stepped in and squashed it. So peace is in Gaza, if it can be given a chance, and it should be given a chance.

[02:27:09] That war in Gaza, that uprising, that conflict where they invaded Israel, that was not Trump's doing, no. He has worked to solve that. He's solved seven or eight, maybe nine wars. There's only the one in the Ukraine that is still outstanding.

[02:27:29] And as to Spanberger and Mr. Jones, what an abysmal campaign they run. There is Mr. Jones fantasizing about killing a political opponent, his children, in front of his wife.

[02:27:46] That is so abysmal, it demands that he exit, cease his campaign, and get out. But the only reason he's in is because, I guess, there is a small chance he might win, and because of the funds that he is able to generate, mostly from out-of-state people who do not know anything about what goes on in Virginia, let alone Loudoun County, where Loudoun County school boards have sponsored the ugly mixes of sex in women's and girls' safe places.

[02:28:21] It's appalling. Thank you. Thank you, Mr. Griffin. Supervisors, we're going to go on and do the last information item, which is a broadband information item, before we take a break this evening. And then what we will do is we will do one close, we will go to break and do one closed session after the broadband implementation item.

[02:28:44] Stop looking at me. Would staff please come to the table? Thank you. The supervisor from the Catocin district is asking to go in and do the dog park issue before we take a break.

[02:29:02] He said he believes it will be helpful. So we, yeah, sure, sure, sure, we can do that. So after the broadband issue, we will do the dog park, and then we will go to break. And Mr. Turner, we're going to do one closed session during break.

[02:29:21] Good evening. Good evening, Chair Randall. Good evening, supervisors. Thank you for the opportunity this evening to give you an update on the broadband projects that we have going on. And also, happy birthday to Mr. Kirshner. And hopefully this update is a little bit of a birthday present for you since you are the sponsor of this BMI.

[02:29:47] In an overall summary of today's update, that since March, the project continues to move forward. The VATI project continues to move forward. The VATI project continues to make progress. As you'll note, Dominion Energy is not here at the table with us, and that's a good reason.

[02:30:07] That's because they have finished the middle mile construction, fiber construction, that was needed for this initiative. They've completed all their make ready activities, so as far as we're concerned from a construction perspective, Dominion is complete.

[02:30:22] So now the focus is on last mile construction, and that is conducted by All Points Broadband and their contractors. If you look at the map on page one, Loudon 2, which is the upper left quadrant in

red, that is the first area of focus that All Points has been under.

[02:30:45] They've completed nearly 15% of the last mile construction in that area and have another 25% underway today. Their next area of focus will be Loudon 4, which is the purple to the southeast quadrant, which includes some of not only Mr. Kirshner's, but also Mr. Crony's constituents.

[02:31:11] So continuing with activities, a lot of good progress, but we must also add that the project has experienced longer lead times than we expected when we last met with you.

[02:31:28] So the county has worked closely with Virginia DHCD to obtain an extension. This would be our second extension since the project initiated. It's an eight-month extension that moves us to June 30th of 2026.

[02:31:47] That's the latest that they'll allow an extension at this point in time. They will consider another if it's needed in the spring of 2026. From a financial perspective, the critical date is December 31st of 2026.

[02:32:05] So funding both ARPA dollars from the county, ARPA dollars from the state, need to be spent by the end of 2026. Right now the project remains on schedule to be to that time frame to make to ensure that all monies that you've put aside are are spent properly. The last thing I wanted to touch on there's the the risk that we're currently working through now is the permits needed for the last mile construction throughout the county to

[02:32:42] reach the 8,629 homes with VDOT, Virginia Department of Transportation. Anything in the right-of-way needs their approval. So All Points is responsible for submitting and obtaining the permits to be able to do that. We're working closely with VDOT to ensure that they are handling them as quickly and expeditiously as possible, which they're doing so far. We meet with them on a monthly basis to discuss solely this project, and we have their leadership engaged as well.

[02:33:17] So we will continue to have those meetings and continue to reap progress through those conversations. The last thing I want to touch on was the BEAD project, which is number three in the item. The Broadband Equity Access and Deployment Project is with the NTIA, the National Telecommunications and Information Administration.

[02:33:50] They're the ones who make the final decision. The Virginia DHCD is the spearhead from the state of Virginia. They've made a proposal for an additional 1,700, over 1,700 addresses in Loudoun County that would be served through that initiative.

[02:34:07] So we're awaiting final decision on that. It's across four different providers. The one thing I wanted to note was that what we've seen with the BEAD initiative is that the timeframes that they're now allowing construction to take place is up to four years.

[02:34:25] So as it currently stands, BEAD construction would take us to 2030. And I think what's key in that is that DHCD is learning, or we're all sort of learning as we go through VATI, which was originally supposed to be an 18-month project, that you're now seeing the DHCD acknowledge the fact that the effort, not just in Loudoun County, but across the state, is much more challenging than anyone originally anticipated.

[02:34:54] And while we continue to make progress, and while it's not as fast as we had hoped, and definitely not as fast as the 8,629 addresses that are waiting for this want it to be, but progress continues to happen. Things continue to move forward.

[02:35:09] We have active residents that now have service because of this project, which Tom will go into a little bit. So we appreciate everyone's patience and support throughout this project, and if you have any questions for us, please let me know.

[02:35:25] I'll introduce Tom Ennis from All Points Broadband, who's on my right. Hey, Mr. Ennis. Good evening, Chair Randall, members of the board. Thank you for this opportunity to provide an update on the broadband project. I will provide some more details to supplement Dave's overall progress update and then allow for plenty of time for questions after that.

[02:35:48] So since our last meeting, we had one active customer. Now we have 20. We have another 80 or so in progress. About 18 to 20% of those who could sign up have signed up, and we're working through the installation process for them. That is our target.

[02:36:05] About 20%. If we get up to 25% or 30% within the first quarter of making a fiber service area active, then we're hitting all of our objectives. We know we talk about more than 8,000 homes that are going to be served eventually from this project. We don't anticipate all of them signing up within the first year or even the first couple of years.

[02:36:24] So it will take several years for them to sign up for service and be installed. When Dave talks about the extension to June of 2026, all the locations in the project will have a full year to sign up and take advantage of the discounted installation costs.

[02:36:44] That is the biggest burden to getting folks signed up to Internet. Today, if you went and asked for Comcast or Verizon service in these areas, you would get a several thousand dollar installation quote. Ours is \$99. That's going to be for the full year after a fiber service area has been activated.

[02:37:00] So right now we are focused on Loudoun 2. We've built about 65 miles. We just started in Loudoun 4, kind of up near Hamilton, built our first several miles there. Then as we move over towards the end of the year and in the beginning of 26, we'll be focused on Loudoun 3 with St. Louis as a focus community in there.

[02:37:23] And then by April, we'll have Loudoun 1 and Loudoun 5 activated and turned on on a rolling basis through June of 26. So by the end of this year, we expect to have about 2,500 locations that can sign up for service. We strongly encourage folks to go to apbfiber.com, sign up for notifications, call our number on the website.

[02:37:48] We're running promotions now to get people to take advantage of the service that you all have invested in. Speaking of investments, right now we're reporting expenditures of about \$28 million, \$2 million of which has been provided by the county. As a reminder, All Points Broadband and Dominion Energy Virginia front all of the construction costs and then as we meet certain milestones we apply for reimbursement. We expect the next reimbursement request to be towards the end of this year for construction in Loudoun too. As Dave mentioned we are focused on our permitting process with VDOT. We meet with them on a monthly basis

[02:38:24] with the county and feels like a daily basis between our operational teams. We have about 220 permits submitted or under review right now. It's about half of what we need overall for the project So managing that backlog, making sure we have enough permitted miles for construction crews, that's the focus today.

[02:38:43] So with that, I'd be happy to answer any questions about the current status or the next steps in our project. Thank you very much. I'm going to allow the Catoctin District Supervisor to ask questions first. Thank you, gentlemen, for being here.

[02:38:59] Thank you for all the hard work you're doing. I know my staff is meeting with you pretty regularly, probably once a month, just to get updates and push where we can if needed. But I appreciate all the work, and I know it has been slower than I expected, but it's great to see this progress. You made the comment that all the make-ready work is done by Dominion, so therefore they're not at the table.

[02:39:19] Is that what I understood? Dominion's make-ready is complete. Also, their middle mile construction is complete. Okay. As we build our last mile, we need to splice and connect their fiber to ours. So that will happen on a rolling basis, but their middle mile construction and their make-ready construction is complete.

[02:39:39] So some of the, I know some of the service areas are Novec. Are they in the process of having that ready? Are they ready or not? Where is that? Novec, their make-ready is in process right now. Typically the poles where we experience more delays, they have an existing telecommunications provider attached to their pole.

[02:39:58] So we work with a Verizon or a Comcast to relocate their equipment. As a cooperative, the process is different than an investor-owned utility like Dominion. We anticipate that they will have their make-ready work done before you move into their specific service areas.

[02:40:16] Yes, and strong collaboration with Novec on all fronts. We're using Novec Solutions Fiber to provide service in Loudoun 4. So great partnership with the team there. Great. You did mention sign-up rate. You said 18% to 20% is what your mark is.

[02:40:35] Right now we're at about 18% to 20%. If we're in the 20% to 25%. For that which is available? Yes, sir. That's all ready to go. Okay. Okay. And you call that. I mean, I just don't know. I mean, I'm sure you've seen this throughout other counties in the state, but at this early process for those that are ready, that's a mark you're trying to hit?

[02:40:57] Yes, sir. Okay. I'm obviously, I have, my home is going to be hopefully serviced by this. Unfortunately, you chose one, like next to last, but that's okay. I'll wait for my other constituents to be served, obviously.

[02:41:13] But my question, I've been signed up for a while. I've gone and done the apbfiber.com. Will you, when the time is ready, will those who have signed up in advance get some sort of contact, or are we just looking for something in the mail? Can you help us understand that? You'll get traditional mail in your mailbox or your P.O. box, but you'll also get an email notification.

[02:41:37] We try about 60 to 90 days before you can sign up for a service. It'll tell you the steps that you need to take. You will need to create an account. You'll select your service level. So signing up for notifications is great. They get you the email notice for the next step, but that does not create your account or your subscriber contract.

[02:41:58] Great. I'm out of time. Thank you very much for all your hard work. Thank you. Mr. Crony. Thank you, Chair Randall, and thank you, Tom and Dave and Nate. So I'm glad to hear that the Dominion issues resolves. Now you're just focusing on the last mile.

[02:42:15] What can be done to speed up the process? Now, I heard you say that VDOT, getting VDOT permitting is kind of an issue. Does everything require the VDOT permitting? Is there anything we can do to help speed up the process?

[02:42:30] So, VDOT land use permits are required for the vast majority of the construction, whether we are underground in a VDOT right-of-way or on an existing utility pole where we need to access VDOT right-of-way to attach our fiber.

[02:42:49] The focus with VDOT is to prioritize on the sections of permits where we want to build next. So focusing on Loudoun 2, focusing on sections in Loudoun 4. We recently got approval from VDOT to increase the number of miles per permit.

[02:43:04] So now we can submit for up to two miles a permit. But it's really focused on priorities, working with them collaboratively to make sure that we are meeting their standards. And then getting out there, building the fiber correctly, closing out those permits, maintaining our bonding capacity.

[02:43:21] Really checking all the boxes for VDOT so we can maintain a sufficient backlog for our construction crews. Okay, so I see St. Louis is kind of one of the last ones too. That's been a community that I've been hoping would get broadband sooner, you know, this year versus next year.

[02:43:44] Do you see them having access in June? What's the time frame you're thinking of? We expect to turn on the primary cabinet that serves all of Loudoun 3 by February. We've already received the county permit approvals for building and electrical.

[02:44:03] And then as we build down from the kind of Blumont area, we're going to be focused on getting down to St. Louis. But there does need to be connectivity all the way from that active cabinet upon Snickersville Turnpike down to the St. Louis community. Okay, so February.

[02:44:19] It can take up to six months from when a customer first receives an advertisement that broadband is coming to their address to be connected. Why so long can we shorten that process? We are shortening that process. We're trying to keep it to 90 days.

[02:44:35] At the same time, we do want to encourage people to sign up for notifications. Six months is longer than we want. We try to target about 90 days. Okay, thank you. I look forward to it coming to Loudoun 3 for St. Louis.

[02:44:51] Thank you very much. When people are signing up, how do you require them to sign up? How do they sign up? So if you are in Loudoun 2 or starting this week, some sections of Loudoun 4, when you go to our website, apbfiber.com, we will collect your address, your contact information, we'll have you select a service level.

[02:45:18] I just want to pause you just for a second because people have to go to your website and sign up via the website that don't already have broadband. Yes, ma'am. It's mobile-friendly. Right. Now, our sales team would encourage me to say, you know, we have a phone number.

[02:45:36] Okay, there we go. And we should say all that stuff. Yes, so phone number's there. We can walk you through that. Our customer care team is trained to work with folks who don't have access to broadband. That's our bread and butter is those who don't have access to it. So the phone is a great way to do it.

[02:45:53] We can also do it online. In other areas of Loudoun, so in Loudoun 3, Loudoun 1, Loudoun 5, they can only sign up for notifications at this point. But in Loudoun 2, in some sections of Loudoun 4, we'll ask for your credit card information, but we won't bill you until we're able to do your installation.

[02:46:13] So I would hope or encourage that for some communities especially, there could be more postcards, some mailings that have phone numbers on them. that they're, if possible, to do anything that doesn't require to do it online.

[02:46:33] What we have found is that it is not completely unusual to find people who do not feel comfortable doing things online, and especially for this discussion, they may not actually have the broadband to do it. And so trying to contact them in other ways, you know, when community meetings are held, maybe come there and have a discussion with a group of people at one time.

[02:47:00] I am concerned that there might be communities that get missed, or some people in communities that get missed, who are maybe not as familiar with using electronic means to sign up.

[02:47:16] And it just, if you kind of think about what you're saying, it's like, you know, we want you to go to the Internet to sign up for the broadband, doesn't really make sense to be quite honest. Let me ask you one more quick question. You can answer both at one time. I'm going to circle back around Mr. Kirshner's question. I want to make sure I heard you right. So 18 to 20 percent of everyone who's eligible at this time has signed up. Yes, ma'am. Okay. That's a normal number because it feels low.

[02:47:44] That's not a low number? It's in the range of being a normal number. Okay. Obviously, we would always like to be higher, but if we were at 25%, I would be saying that is well above expectations. So 18 to 20% totally normal.

[02:48:00] Okay. And then my first question. Yes, ma'am. So if you had looked at our website probably six weeks ago, it would have been hard to find our phone number. Now it is up in yellow at the top. And as we continue making service available, we're going to have a pop-up trailer.

[02:48:16] So we'll be in person. We'll have a local sales rep signing people up in person. We'll find a parking lot at a local store and just set up shop there for a couple days. We'll also come to HOAs, their meetings, sign people up that way as well. That's perfect. That's so helpful.

[02:48:32] Thank you very much. We appreciate you all. We know it's going a little slower than we wanted to, but it is happening. So thank you very much. You're welcome. Appreciate you. Supervisors, we are going to do the one item, the dog away from home item, which is in Mr. Kirshner's district. So that is item number, what item number is that?

[02:48:55] 25, not 25, 5. 5. Number 5. And Mr. Kirshner has asked to go straight to a motion for that item. Mr. Kirshner, you are welcome. Thank you, Madam Chair. I move the Board of Supervisors to approve Leji 2024-0014, dog home away from home, specs 2024-0028, subject to the conditions approval dated August 4th, 2025 and based on the findings for approval provided as attachment

[02:49:30] one and two to the October 21st, 2025 Board of Supervisors Business Meeting Action Item. Motion is made. Is there a second on that motion? Motion is made and seconded by Supervisors saying discussion on the motion. Mr. Kirshner. Yes, thank you, Madam Chair. So I went out there since we were, had our last meeting as I had promised, folks who had spoken had concerns about it. After being there, I have even fewer concerns myself and so that's why I'm supporting this i did speak with the applicants very

nice folks have been actually been if everyone remembers have actually been running this for quite some time with the dogs that they've proffered that they will limit it to that has been there and and there have really not been any complaints about

[02:50:09] it and they've and in an attempt to come into compliance and i want to applaud our staff for working with them to do that because anytime we have something like this which is so critical to our community to provide services for dog sitting. It's critical we work with those folks when, because sometimes it's a fairly sophisticated process to come in compliance with our zoning and take some time. And they spent quite a bit of money on this. I, you know, many thousands of dollars because this is not just a minor specs and major specs. So I really commend the applicant for that. One of the first things I always ask myself when I look at an application like this

[02:50:45] is what is the intensity of the use? They have limited to 15 dogs, which is the maximum, and this is nearly five acres, not quite. I went out there, and the closest, I think, house, current house that is there is about 1.5 football fields away. Much of it is screened or has screening, has already been planted, and is growing up fairly rapidly, and they've also promised to put in a six-foot fence to help in addition to the screening. They have limited their

[02:51:19] hours of operation, both for pickup and to drop off. And if you can't make it within that time, well, then your dog gets to spend the night at a doggy hotel. I really commend the applicants for working through this process. It's a rigorous process at times, I'm sure, and expensive.

[02:51:37] Obviously, they had to have. What many people don't realize is you have to have your whole whole, you have to go through a whole plat process, you have to bring in an engineer. It's very time-consuming, expensive, and sometimes seems a bit over the top, which is, of course, why sometimes we're trying to do, we look at our zoning ordinance periodically, we're doing our rural zoning rewrite to help reduce some of the burdens. I know a lot of folks have expressed a number of concerns, some of the neighbors. I don't have those same concerns at all whatsoever based upon the proffers that have been given in this application as well as the tremendous care and

[02:52:15] tremendous excellent people who are running this facility. So I do hope my fellow colleagues will support it. I think it's a great application. And I asked them today, I said, do you have a waiting list? And they said, oh, you won't believe it. Basically, no one can basically get into our kennels just because there's such a huge need for this. And one of the reasons we allow for this at the right place i know we've turned one of these down before but this one is far better application than we turned down before so thank you appreciate it mr crony oh thank you chair randall so we did have one speaker tonight and i just wanted to ask a question about um i think

[02:52:55] this the speaker raised issues about water and um and also about um just waste so i just want to ask if those issues were addressed in the application. Good evening. Thank you. Hi, can you hear me? Okay, perfect. There is a condition related to water quality that water, animal bathing water and animal waste will be permitted, not be permitted to discharge into any channel stream or pond on the property. There's also a condition related to animal care and waste handling disposal. The applicant has stated previously that they have a company that comes

[02:53:34] out to collect all the waste I think once a week so yes it's conditioned. Okay thank you. Thank you Ms. Umstead. Thank you Madam Chair. I think Supervisor Tacroni addressed my one question but we did hear from Ms. Buchanan tonight about her concerns that I think these conditions might not

[02:54:06] be feasible to meet is it our experience with similar facilities that the kinds of conditions we have on waste wastewater can be accommodated at this facility obviously every site is unique but yes i do believe um we for any for any applications where we have done similar conditions we have not received complaints about them after the fact so we believe it's possible to do in general and at this site. All right. Thank you very much. So I want to actually

[02:54:46] review some dates because it was said that this was rushed through and there was the commission public hearing on this was July 29th, correct? 2025 this year. Yes, that's correct. And there was advertising for that before the actual commission public hearing. It was advertised.

[02:55:02] Okay. So we have been at least, when was that? Do you know when it was advertised? Would it be two weeks before that, two weeks before that? So early July. Early July, somewhere it was advertised. So we've been at least since early July having this discussion and having the public hearing on that as well, correct?

[02:55:25] Okay. And then the board held our public hearing on September 10th on this item. All right. It was advertised beforehand. It was advertised beforehand, exactly. I just want to make sure because when people, when it is said it is rushed, I don't know what that means. And in my head, several months is not rushed.

[02:55:43] That's why I just want to make sure the dates that I have are correct dates. To Mr. Crony's question, just a second. So you said there's somebody contracted to come out and pick up the waste once a week. Is that what you said?

[02:56:02] So that's not actually in the condition the applicant stated that during their presentation at the last BOS meeting, board meeting. Their condition states that it will be disposed of properly. So somebody has already picked it up, and then somebody comes out once a week to dispose of it properly.

[02:56:19] Yes. And is there anyone monitoring whether it's picked up properly? Not from the county side, no. Okay, because 15 dogs is a lot. That's a lot of, I know, but it's still a lot. So we have a plan in place, but just to be clear, the staff, I mean, we can never guarantee that all the waste is always picked up before it gets disposed of.

[02:56:48] Is that a correct statement? Yes, and like with any of our other zoning matters, if someone feels that those conditions are not being met on the site after presumably the board approves this, they can report it to zoning enforcement and we will take a look. So it's a zoning enforcement issue if somebody has a concern or proof that it's not being done correctly.

[02:57:04] Yes, ma'am. All right, thank you very much. Mr. Kirsten, would you like to close it? Just very briefly, I kind of made a surprise visit to the location. They didn't know I was coming. I came within an hour of saying, hey, I'd like to come out. There were four dogs out. I think they've limited themselves to four dogs at a time.

[02:57:21] The first thing I would know is I was a little shocked because when I pulled up and walked over there, not a single dog barked. Now, I know dogs bark. I'm sure that's not going to be the case all the time, but it was quite surprising to me. So the dogs are very well trained, I know they've put some, for dogs that do, they've agreed to put some measures to help keep that from happening.

[02:57:42] I would also note that this has been a two-year process for the applicant. I'm not sure actually when they filed their application, but they said it's almost two years before they've actually got to this final point. It's gone to the Planning Commission. It's gone through, obviously, a number of revisions with the staff. And then, of course, it's come to us.

[02:57:58] So this has been not a rushed process, as the chair pointed out. As far as the waste is concerned, I did ask the applicant about the waste specifically. I think they pick it up on a daily basis. They put it in bags, and the once a week is picked up by a service which they provide.

[02:58:14] When I was out there, it didn't smell bad. I didn't smell anything. It was a very well-picked-up, clean place. So I think we have a very good applicant who kind of stands by and I think will be a great steward of the agreement that they have entered.

[02:58:30] So I'm happy to support this application. Thank you. Motion was made by Supervisor Kirchner, seconded by Supervisor Sains. All in favor, please say aye. Aye. Any opposed? That motion will pass 9-0. Supervisors, we're going to go into closed session and do one closed session, item number three.

[02:58:47] And when we come back out, we will do board comments, and we will do appointments. And then we will move to the rest of the action items, which we have. nominations we will have three action items left and then at the end of the meeting we have two more closed sessions. So Mr. Turner would you please read us in the closed session number three. You bet Madam Chair I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to section 2.23711 of the Code of Virginia to consult with legal counsel about a specific legal matter regarding the impact of recent federal action on

[02:59:27] county grants and contracts. Motion is made in segmented by the Bricksman discussion on the motion. All of those who say aye. Aye. Any opposed? That motion will pass 9-0.

[02:59:42] We are in closed session. Okay, we are back, and Mr. Turner, would you read us out of closed session, please?

[04:28:08] Yes, ma'am. I move that the closed session be adjourned, that the Board of Supervisors reconvene at public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[04:28:24] Second, seconded by Mr. Letourneau. Discussion on the motion? All of the people say aye. Aye. Any opposed? Would everyone please affirm? Ms. Glass? Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. Affirm. And I affirm as well. I have a motion. I move that item number four, the staffing for adequate fire and rescue response, also called the safer grant, is tabled, that this item is tabled indefinitely.

[04:28:55] Motions made and seconded by Supervisor Bricksman, there is no discussion on the motion to table. All the people who say aye. Aye. Any opposed? That motion was passed unanimously. We're going to go to staff, to board comments, and first we will go to, oh, I don't know, Ms. Glass.

[04:29:23] Thank you, Madam Chair. I have one disclosure. tuesday october 14th my staff participated in a pre-application meeting for proposed gas station and convenience store at ashburn crossing and um that's all i have thank you no comments tonight okay miss miss um um thank you madam chair um the chair at the last meeting caught uh the fact that

[04:29:59] the leesburg halloween parade is going to be on thursday the 30th the night before halloween for those participating um kiwanis is running it and you can register uh with kiwanis leesburg kiwanis on their website um parade starts at six goes until eight if you are planning to park down near the Safeway which is where the parade ends just be advised that the

[04:30:35] normal parking areas have been closed off so you may want to do a recon run and see and see where you want your your vehicle to be to pick you up at the end of the parade. Two comments that were made by one of the speakers addressing the situation in Gaza. Both of these comments are anti-Semitic. One is bad evening to the Zionists, and the other

[04:31:14] free Palestine has become associated with the murder of Jews. And that is all I have. Thank you. Ms. Bricksman. Thank you, Madam Chair.

[04:31:33] I don't have any disclosures. Recently, I attended the Women of NACO meeting. We were discussing a youth program at the February conference I'm excited about, and I also attended the Community Economic Workforce Development meeting with NACO. Supervisor Tacroni and I attended a really awesome event on Friday with the PEC and a number of other partners, and it was called AgroVoltaics, which I don't love the name, but it's a really exciting concept, and it's bringing farming and solar together, and it gives farmers additional revenue to help them

[04:32:09] keep their land, produces energy where people actually want it, and gets projects connected to the grid within months versus years. It's defined as the production of marketable agricultural products in conjunction with solar energy production throughout the full life of a solar array with intentional design that ensures land with the array remains suitable for agriculture.

[04:32:33] The project we saw occupied about a quarter acre in the nonprofit's eight-acre community at Roundabout Farm, which they purchased recently at Vegetables Farm in Loudoun. It's small by design, but it features 42 ground-mounted solar panels with a total capacity of 17 kilowatts, They had two batteries for backup power during outages in about a 2,000-square-foot growing area.

[04:33:00] PEC shared that Virginia has almost 40,000 farms covering 7 million acres with 97% of them being family-owned, averaging 187 acres each. What I find really interesting is that by connecting only one megawatt of power onto the grid from each of those farms would carry nearly 40 gigawatts of energy connected to the grid in a much shorter timeline than larger scale, while directly benefiting our agricultural communities.

[04:33:29] If we only got 10% of that potential online with these very small projects, it would be the equivalent of four nuclear power plants. I really would love to see us as we work through our solar CPAM and ZOAM that we're working on find ways to incentivize these types of projects in Loudoun County because, again, it is a very small portion of a farm, and they were growing vegetables and herbs and incredible amounts of food that they've been donating actually to Loudoun Hunger Relief.

[04:34:07] I will be, hopefully, we can be working on this in our zoning ordinance so that we can promote this and incentivize it. It's a really great project, and I encourage all my colleagues to read about it. By way of gun violence, there have been 11,975 total gun deaths this year, 350 mass shootings.

[04:34:29] The deaths include 184 children under the age of 12 and 830 teens age 12 to 17. Thank you, Madam Chair. Thank you, ma'am. Mr. Laterno. Thank you, Madam Chair. I'm very happy Diwali to all those that celebrate.

[04:34:47] Certainly in my neighborhood last night, there were lots of celebrations that we heard, fireworks. So I'm sure that was a good festive time for those that celebrated. I want to just mention that early voting is now open at all the satellite locations, including Dole South.

[04:35:04] So hopefully residents take advantage of that. And thank you, as always, to our election workers that are out there making that happen. I do want to recognize it's a shame that we let Caleb Kirscher's birthday go by without recognizing it.

[04:35:19] So I just wanted to make sure that we work that in tonight. I'm just jumping from topic to topic on a much more serious topic. Sorry to be the buzzkill. But I just want to express my continued thoughts and concerns for our federal workers.

[04:35:35] Now that many have missed a paycheck, it is no laughing matter at all. It's a very serious, unfortunate thing that some in our community are going through. Not just the federal workers. We talk about the federal workers, but there's lots of businesses. There's lots of small businesses, contractors, but not even just contractors.

[04:35:51] People who have restaurants and people who run businesses that are adjacent to facilities that people aren't going to. All those folks are really being impacted. And a lot of them are not going to get any back pay. The federal workers, hopefully, at some point when the government reopens will, but a lot of these other folks won't.

[04:36:08] So it's a very serious thing. I feel like this government shutdown has been very cavalier-y kind of treated out there in the country, but it shouldn't be. It's a very serious matter. We may have some differences of opinion up here as to who exactly is to blame, but it doesn't matter. We all should be unified in supporting our federal workers the best we can.

[04:36:26] In the Dulles South area, I want to congratulate Target on their big grand opening a few weeks ago. The store has proven to be just as popular as I thought it would be. It's a little difficult getting a parking space, but it is doing very, very well. Lots of residents excited about that, and we're excited for both that, but also the other development that's happening around it.

[04:36:46] And then finally, we are anticipating the grand opening of the Dulles South Wawa coming up on Friday. That one had a bit of a history here for those of you that's been on the board you may remember they originally were proposed in a different location on Route 50 that I had some concerns with because of access issues and they ended up pulling out of that and going to this new location which is much better and will be opening soon. So I'm looking forward to that grand opening and congratulations to them.

[04:37:03] No disclosures. Thank you. Mr. Letourneau, my chief of staff, who shares your name, is a Wawa fan.

[04:37:24] I have a feeling he'll probably be at the opening. Mr. Crony. Thank you, Chair Randall. I'm a Wawa fan, too, so I see you. All right, so disclosures.

[04:37:41] On October 15th, I met with Packy Crown, Bronco Pantovic, Scott and Ramona Batchelor and Steve Donches regarding the Pantovic property rezoning.

[04:37:56] So my board comments is I have a Brambleton community meeting coming up next week on October 29th at 6.30 p.m. at the Legacy Elementary School. This is our second community meeting to discuss the Belmont Ridge Road and Legacy Park Drive intersection improvement.

[04:38:18] County staff and representatives from VDOT will be joining me to present a solution aimed at improving pedestrian crossing and traffic patterns. I really hope the community comes out for this meeting to give their input on the design, answer any questions you may have.

[04:38:37] this will really improve the safety at that intersection. So I look forward to presenting the proposed solution. I wanna thank Loudoun Valley Estates, one, two, and three, Loudoun County Public Schools, the Piedmont Environmental Council, and the HOA Roundtable for collaborating with the county to develop an alternative solution that recommends that Dominion underground the Golden to Mars transmission lines that pass closer than 500 feet from any residents or school.

[04:39:08] I really think this is an example of how when you work together creative ideas can be formed and this is a really great solution for the residents in that area and for the schools.

[04:39:25] What did go with Julie to the Agrivoltaics launch, ribbon cutting, and it is really a turnkey opportunity for farmers in our area and help people look into how they can get accessory solar and how they can power their farm or their house.

[04:39:46] I did go to three small business ribbon cuttings in the Little River District recently. One was MG Moving Services in Sterling. Yes, I have Sterling in the Little River District. The second is BKD Bagels in Brambleton.

[04:40:02] You have to go if you haven't gone. They have excellent bagels and sandwiches. And the third is Forever Canine Resort and Training Center. Lauren White opened that. She's a trainer if you have a dog. She seems really excellent.

[04:40:18] Stacy Metcalf brought her dog, and her dog was very well-behaved. So I really enjoy seeing that new business that's off Leesville Road in Leesburg in the Little River District. Thank you. Thank you. Mr. Kirshner.

[04:40:36] Thank you, Madam Chair. For disclosures, on September 22nd, my staff met with the applicant for Magnolia Rose. October 1st, my staff and I met with Loudoun United, representative for them. On October 14th, my staff and I met with the applicants for the field, with Field Farms and their brokers.

[04:40:55] On October 16th, my staff and I met with members of the Percival Town Council. On October 22nd, my staff met with the Loudoun B&B Guild to discuss the Western Loudoun Rural Uses and Standards of CPAM and ZOAM. A couple comments about things coming up in the District of Catoctin.

[04:41:16] Loudoun Parks and Rec is holding their Halloween event in Franklin Park on October 24th from 6 to 8 p.m. It's a free-to-the-public event where you can decorate pumpkins, play games, and do some trick-or-treating. Percival Parks and Rec Advisory Board is holding their Creepy Crawly Savage Hunt on October 26th at the Chapman Damari Trail. The Percival Artisan Tour is November 1st and 2nd. It's a self-guided tour where you get a visit to local artists and artisans and discover the jewelry paintings and other fine creations. My church at Cornerstone Chapel is having their harvest party on October

[04:41:53] 31st from 5 to 9. My kids usually go to it and have a blast, so all those are tremendous events. in and around the district for you to go that's the news from catocton now thank you very much to all my board members for the the well wishes and these silly balloons whoever put those up behind me i appreciate it my father used to have a shirt that said big letters said 50 isn't old and then really small letters

below it and it had a tree on it said if you're a tree so i'm not not really that old but i'm happy to join the i believe the the the largest group of age group up here the

[04:42:30] I find four ladies in their 50s, so I've left the two young gentlemen alone and haven't quite reached the upper echelons of the olders. Move on. And I will point out that in my birthday card, Mr. Turner did say he would be happy to look for a unit for me in Lansdowne Woods.

[04:42:56] But, Mr. Turner, I understand you'll have to wait another five years because it is 55 and up. - Thank you. - That's funny, that is funny. Mr. Sainz. - Thank you, Madam Chair. No mandatory disclosures.

[04:43:13] I'd like to remind folks that we're still taking folks to allow to do the sanitation district survey. That closes on October 24th, so this is the final week. If you're interested in the formation of a sanitary district for garbage removal and disposal, Please make sure you fill out the questionnaire.

[04:43:36] We also would like to take a moment to say thank you to all the residents, students, and HOA organizations, London Valley Estates 1, 2, and 3, for participating in the recent hearings that the SEC had at Rockridge High School regarding the Golden to Mars transmission lines.

[04:44:01] It was a very good showing. Everybody was spot on with their commentary and you're able to show up and show out for an issue that is near and dear to your heart. So that's very encouraging to see and glad that we had very good participation with that.

[04:44:18] The Sterling Foundation, which is a very active organization in the Sterling Park community, are seeking new board of directors. So if you're looking to get involved in your community, there's no better organization out there than the Sterling Foundation to help with the beautification of the Sterling Park community.

[04:44:40] And we're not going to obviously tell you who to vote for, but I just want to remind folks that we do have an election. We are actually in the election right now. So the last day to vote is on November 4th from 6 a.m. to 7 o'clock p.m. But you are able to vote right now at the early voting locations around the county.

[04:44:58] So please take full advantage and exercise your civic duty. I'd like to remind folks, as I did this morning, to some youth at a private school in Sterling that people fought, died, and are getting maimed in other places to have the right to vote and exercising the right to vote.

[04:45:19] So please don't take that for granted, that right to vote. so um and that is all so thank you thank you mr turner thank you madam chair on monday september 22nd 2025 my staff spoke with scott donches about the application for zmap 2024 0006 pantova property rezoning on friday october 3rd my staff and i met with colleen gillis from coolie to discuss the application for west belmont friday october 10th my staff and i spoke with anna Ritter from Walsh Kalusha, Kashif Khan, Ankar Walia and Nathan Mateer, Tushar Awar and

[04:45:59] Arshad Hussain about the Hickory Woods application. On Tuesday, October 14th, my staff spoke with Molly Novotny about the Cochran Tech application. And on Monday, October 20th, my staff and I spoke with Ben Wales from Curata and individuals from the applicant team to discuss the application for residents at Dulles Plaza thank you well that was a lot of meetings I don't I do not I do not have any disclosures I do want to say as we are being aware of

[04:46:32] domestic violence awareness month at the laws event I spoke and so I looked up some stats just on domestic violence and I was I was floored in domestic violence in America. Approximately 10 million people are victims of domestic violence each year in the U.S. with about 24 people per minute experiencing rape, physical violence, or stalking by an intimate partner. Nearly 10 million women are victims of domestic violence each year per minute. This breaks down, the numbers break down to about 20 people being physically

[04:47:07] abused by an intimate partner every minute. I had no idea that those were the stats. And somebody said it tonight, we'd like to believe it's not our county because it's such an amazing and wonderful county, but of course it's everywhere, and so let's just try to be aware of these numbers. There are many sites you can go to that will help you know the signs of a person, including a child, that might be a victim of domestic violence. Please do not believe that it cannot happen to you or happen on your block or near your home or that domestic

[04:47:46] violence and trafficking has a certain face. It doesn't. It doesn't look like anything. It looks like everything. So please try to be aware of all these things. This morning I did go to the MBBIA breakfast.

[04:48:03] It was really, really well attended. I do look forward to engaging with our legislators on all the different and many housing issues. And one last time, I will say happy birthday to Caleb.

[04:48:20] Okay, keep it coming, he says. Let's do nominations. If you have a nomination, will you put your light on, please? No nominations this evening. We are getting to the point. I did check. We are getting to the point where a lot of our boards and commissions and committees are pretty full.

[04:48:39] And I think some of the ones that, because my staff publish these closely, some of the ones that are not full, a commission of committee that's not full, it's because we don't have enough applicants coming in. So if anyone listening, if you are interested in serving on a commission of committee and board, just check the site and put your name in so we can consider you.

[04:48:58] But right now, we're doing better than we, I think, ever have done on getting our commission committees full. So that's really fantastic. We have two more items and then two more closed sessions. So item number six would be the Department of Planning and Zoning Work Plan.

[04:49:17] If staff will please come to the table, that would be wonderful. This is item number six. Hello, how are you? I am doing well.

[04:49:32] I see a note here at the staff table that absolutely everybody must wish happy birthday to Supervisor Kirshner. So I'd like to wish happy birthday as well as I pull up my item. Loons don't give away. At the staff table. That's the requirement to be at the staff table tonight.

[04:49:51] It's on the computer screen. It's on the computer screen or else. All right, we have a 10-slide presentation. I'd like to see it. Yes, ma'am. Good evening. I gave Judy Burkett the night off, so she'll be nice and rested when the majority of you see her probably around this time tomorrow night.

[04:50:13] maybe y'all will get out a little earlier we'll see so this is our last quarterly update of calendar year 2025 i will be back in front of you again at more more than likely at the second business meeting in january and i do want to kind of touch on pretty much every project here at least a little bit and talk a little bit about some of the things i'm likely to talk about in january as well just as a little bit of a precursor so

the recommendation tonight is as always to approve the items in the three tables in the item including one that i will highlight when we get to it which

[04:50:53] is going to be a multi-component project related to the upcoming abolishment of the route 28 highway transportation improvement district sophie i mean sylvia quran yay matt yay well but well you don't get any because you're not on the board with us you know you have to go to that meeting so though it's not on the slide to highlight a little bit of good news we did have two items come off of the work plan back in september the st louis village plan and the gloucester parkway cpam were both approved great at the top of our zoning amendment work plan the data center standards

[04:51:30] and locations phase two was just the project plan for it was just before you last month so we have started making progress on that i'm aware and have worked with um supervisor crony on a couple of motions that she would like to make tonight and just to get ahead of that i will just say that those those motions will not delay that project they will just give a little bit of clarification um should the board decide to pass the motions a little bit of clarification on some direction as for how we should proceed the western loudon rule uses and standards project is is what will be before TLUC tomorrow night, yet again.

[04:52:08] The one thing that I wanted to highlight for that, that wasn't really trying to be funny, but I can understand why you're laughing. - But it was, anyway. - The one change I do wanna highlight for the entire board is that we have decided to have the project come back to regular TLUC meetings after these listening sessions that have been ongoing as a way to basically ensure that we are getting the correct information out of those listening sessions and receiving the board's clear guidance at a meeting where it's a little bit easier, a little bit more focused just on kind of summarizing and getting to those

[04:52:44] final decision points. The zoning orange rewrite adjustments, ZOAM was back in for you in September for the resolution of intent to amend. So we were working on that as well and hoping to have some text ready for the zoning orange committee early next year. So the new item that I want to highlight is the project that we're going to have to do regarding Route 28.

[04:53:14] So in partnership with Fairfax County, the district was created and has been around since 1987, and we're projecting that the project completion fund balance plus other reserves for the district are going to be sufficient to pay off the district's debt early in fiscal year 2027.

[04:53:33] Virginia Code requires the abolition of that district by resolution passed by the board, in this case the boards of Loudoun and Fairfax County, upon the petition of the Route 28 Highway Transportation Improvement District Commission once that debt obligation has been fully paid. So section 15.2-4603 of Virginia Code is a provision related to this district that requires all zoning ordinance regulations relating to commercial and industrial zoning classifications within the Route 28 district to remain as permissive as such regulations were upon the the district's creation until the earlier of July 1st 2037 or for so long as there remain any

[04:54:11] outstanding monetary obligations. So as you are all likely aware the the reason that we still have properties under the 1972 zoning ordinance is because of this provision and because of the the tax district and the highway improvement district. Once the district's debt has been paid off and the district is abolished the county will no longer have that authority under Virginia code to administer the commercially and industrial zone properties under the 72 ordinance.

[04:54:40] The same will be said that the property owners will no longer have that protection under the same provision as well. So we have been looking at the past few months and are honestly still in pretty active communications, both talking a little bit to Fairfax County, although they've done things completely different than us, but just to kind of keep each other aware.

[04:54:58] But planning and zoning has been working with the county attorney's office to figure out the exact steps that we think we need to take to have a relatively smooth transition for all those properties under 1972 to come under the new zoning ordinance. So I don't want to get into any details about that tonight because honestly we have not really finalized that, but it's possible, I would say likely, that there will at least be a zoning amendment necessary, a comprehensive plan amendment necessary. The district has mentioned in both documents. There will need to be some sort of recognition from a zoning map perspective of that transition from the old zoning ordinance to the new one so we've

[04:55:37] talked about having that be purely legislative we've talked about that having potentially be something that starts as an administrative notification that there's some other processes that can go along with it so not to confuse anybody not to get out of order we want to finalize that pretty securely and we'll bring that plan back to the board but because this because the district is I'd say at least highly likely if not absolutely positive to go away in the next fiscal year this is something that we have to do it is not a project that is a nice to do and so that is why I've I've prioritized it above the other projects that have been in queue

[04:56:13] both for the zoning amendment list as well as the conference of plan amendment list so happy to take any questions on that now or after the fact but we wanted to make you all aware that that is something that is that is coming we are actively working towards it and we'll be presenting a plan to you once we have crossed all the T's and dotted all the I's. You done? Just with zoning. Yeah that's what I thought. Okay. So we've talked about the first two priorities on the non-historic planning initiatives. The third is the 2024

[04:56:51] general plan review CPAM which will be in front of you at the November public hearing. We do have briefings available. I emailed the board on Friday to let you know that we are happy to meet with you if any of you desire to. We've scheduled I think three so far and so please reach out to me or reach out to Rebecca King as the project manager if you'd like to have a briefing before the public hearing. One of the things I do want to highlight in there just because it's actually come up internally in the past couple days is that that project being only a comprehensive plan amendment does include some recommendations for future projects

[04:57:31] be a zoning or other comprehensive plan amendments that item itself is not proposing to prioritize or set a timeline for any of that it's just noting that that is the content of the cpm and so i'm proposing that essentially if that once that gets approved the next work plan item that comes before you will be when we discuss that i propose proposed priority levels and things of that nature so we We actually have a number of things in there, I think it's seven, that all have some future step that is not purely part of taking action on that CPAM, and we have a couple of other

[04:58:08] things completely unrelated to that project that DPZ is aware of that we will provide the board more information about at the January update. The Runway 30 project will also be at TLUC tomorrow night, where we will be presenting the design group's recommendations.

[04:58:28] we have been briefing TELECOM members and we will be happy to brief the remainder of the board after TELECOM takes action on that. We anticipate hopefully bringing that item to the board either at a November or December business meeting and that will be ideally hopefully one of the next projects to come off of the work plan hopefully prior to my next update to you in January. For the phase one of the electrical infrastructure CPAM that will be presented for consideration at the planning commission's public hearing at the end of this month and so we're also hoping to bring that to the board for public

[04:59:04] hearing early next year. The county-wide transportation plan CPAM we have met with many of you at this point many months ago and have met with other stakeholders to get an idea of all of the different ideas that people have about what they would like to see as part of that project. So we are at least tentatively but more than likely going to bring the project plan to you at the first business meeting in December. If not, it will be in January for sure to get your blessing on that project plan and also to discuss with you the scope of what we

[04:59:39] can fit in that project within different timelines. So that is something that we are actively working on and we'll bring to you shortly. We've talked about Route 28 already. For the Village Small Area Plans, we have been in a procurement process since the summer to try to bring on some task we're consultants for the department as a whole and we will be utilizing those consultants for this project in particular just because of the scope of it because it is going to be numerous projects, numerous individual plans as part of what's right now just listed as one in the work plan. So a handful of us in the department conducted interviews in September. We are

[05:00:19] currently in negotiation with our top two firms and we're hoping to have that contract finalized in the December to January time frame. So once they are on board and hopefully once a few of these other projects start to come off of the work plan, we are anticipating beginning work on, well, we will bring a project plan to you to kind of talk about the entirety of the village plan project, but then more specifically to start work on a few of those villages that have been prioritized as the initial ones to tackle sometime in the beginning of next year.

[05:00:52] At the July work plan update, I'd also propose, and the board has adopted as part of the work plan a CPAM to adopt some of the Loudoun's trails and waterways information into the general plan that will allow us to try to minimize the number of commission permits that are needed to implement that plan fully and just save a little time and save the county a little money as we continue to try to build out those different pathways. So we do not have a project manager for it yet but that is yet another one that is hopefully going to be something we can tackle in the relatively near

[05:01:29] future. On the historic work plan, just to highlight that the three National Register nominations that were also part of the board's motion in July have been added for Watson First Baptist Church, Howardsville, and St. Louis. So we actually have been able to write a contract from another locality to get started on those. So Ms. Stephen Tritt and her team are beginning to tackle those and continue progress on all three of those projects. So that is formally everything

[05:02:07] that is listed in each of these tables and some brief updates on those projects. I think overall a couple things that I wanted to highlight. In the work plan right now, there are 23 projects. 12 of them are active. Some of them obviously are listed in a couple places, but those are our bigger projects. So we have a very, very heavy active workload. And I would say that the department really is at capacity, if not over capacity, at least in the short term right now. And not just because of these. Quite often, the first month

after your break is very busy for most of the departments, but especially for us who are very public facing. You have questions, your constituents

[05:02:46] have questions, things that have drug out over the summer kind of get tackled. But we've noticed this year that that has not really dropped off in October so far. So hopefully we can get caught up and some of those things stop coming in soon. But we've faced a number of more, maybe not necessarily complicated, but a number of enforcement cases that have come up that are requiring sort of a lot of collaboration between divisions, between departments to make sure we're giving accurate information to the public. We're also dealing with a lot of vesting determinations for projects that were approved prior to the adoption of the new ordinance, but that are now that they are coming in with either their entire development or some phase of their development, trying to negotiate

[05:03:24] between what they what they had approved and what they originally thought they had kind of locked in and what the ordinance requires now and what is they're actually vested under so the zoning administrator and her team are working closely with the county attorney's office on a number of those trying to process those expeditiously but they are very technical in many cases and so that is taking up a lot of staff time we are also as you as you're all aware also still working through the legislative and administrative land use process review we have a number of task force groups and subgroups honestly to the extent I don't know the exact number right now but there's

[05:03:59] roughly somewhere between 12 and 15. They have been meeting since July most of them are meeting twice a month. There's you know a combination of rock star groups that are really making great progress and some that are having growing pains that we're trying to work through. It's a has been a very aggressive schedule to try to tackle that and make significant progress on that in addition to these projects and other day-to-day things. If I'm being completely honest, probably for DPZ right now, in this moment, that schedule's a bit too aggressive, but again, we're trying to get caught up and try to make sure that we have sufficient time to tackle all of these

[05:04:35] things individually. Let me see. So as I'd mentioned, in January, I will not necessarily propose new projects, although depending on when the board takes action on the 2024 general plan review item I may for some of those but there are a number of things that have that have been kind of floating out there that staff is beginning to kind of work on the background that we will want to propose as projects at some point in the future so I planned in January to kind of try to highlight some of those give a little bit of context and even if they're not included in

[05:05:14] table formally to really put a lot of it out there because that will be a right now it definitely feels like a lot of additional work on honestly some very necessary things but it is obviously a heavy work plan as it stands right now so just to give you a bit of notice whenever the time comes.

[05:05:30] So with that I'm happy to answer any questions. Yeah I really do appreciate what you saying like we're help with the staff's capacity is right now because we don't know if you don't tell us and so we have we had talked about that before and so the fact that you're doing that is really very very helpful. I'm going to go to Mr. Crony for a motion but I want to make sure that I heard you before that when you said that her two motions that she can just fold into the main motion will not add any time or any extra weight to the two we already have what we already have in

[05:06:07] the DPZ work plan correct? Yes ma'am. Okay that's that's good so knowing that Mr. Crony you can make the motion and then just do some of my further moves to make a model at one time. Okay yeah

thank you chair randall okay i move that the board of supervisors approve the current list of projects listed in tables one two and three on the department of planning and zoning work plan as identified on the october 21st 2025 board of supervisors business meeting action item i further move that the board of supervisors direct staff to develop high level policy guidance that supports future transit-oriented development around the loudon gateway metro rail station

[05:06:47] while accommodating the ongoing operation of existing data centers as part of CPAM 2025-0001 data center standards and locations phase two. I further move that the Board of Supervisors direct staff to draft zoning ordinance tax that would require a substantial minimum separation distance such as 500 feet between new utility substations and existing residential structures as part of zoe m 2025-002 data center standards and locations phase two second motion made and

[05:07:26] seconded miss to crony all right thank you chair randall so um at the september 16th 2025 board meeting uh staff mentioned that um the board could um direct staff to assess strategies to support future transit-oriented development around the Loudoun Gateway Metro Station while accommodating the ongoing operation of existing data centers.

[05:07:54] And it could be incorporated into the scope of phase two. So I thank you for bringing that up. I think we all know the Loudoun Gateway Metro Rail Station is not thriving the way the Ashburn Metro Station is thriving because it is all data centers.

[05:08:12] I actually go by that location in Sterling to go to the gym, which is right near there, and that structured garage is pretty much empty. So I look forward to some high-level strategies and guidelines that staff can come up with to make it a little more vibrant.

[05:08:31] And some ideas I would say would be maybe transit-oriented office, educational entertainment, and institutional uses next to the gateway station. And to really realize the vision that we have in the urban transit center place type, which is what it is now.

[05:08:49] Regarding the setback, we put a 500-foot setback for data centers during the grandfathering resolution in March. And I think substations have the same impact as data centers.

[05:09:08] In fact, sometimes more as far as the visual impact. So my request would be to take a look at a minimum 500-foot setback between substations and existing residential.

[05:09:24] Understanding that there might be some nonconformities with existing and previously approved substations, but I know that we'll be looking at that for data centers. So this would be the same process. But I do think data centers, or I do think substations really need an increased buffer to mitigate the negative impacts next to residential.

[05:09:45] We see that with some of the substations that come through the board, Tuscarora Crossing, Arcola Grove, and this will help address some of the community's concerns. Thank you. - Thank you, Mr. Sainz.

[05:10:00] - Thank you, Madam Chair. To the first edition of motion regarding, looking at high-level policy guidance for future transit-oriented development around Loudoun Gateway. And, you know, with respect, Supervisor Coney, this motion or this idea is about eight, nine years too late, in my opinion. In my first term, we actually tried to make sure that the Loudoun Gateway was not going to be a industrial zone data centers. But unfortunately, I fell short

[05:10:36] on votes to to make that happen at the time and we are seeing the effects of that now where there's what two data centers under construction substation under construction probably two more data centers that are going to be going uh we just broke ground for two flex industrial buildings there's two already data centers that are there in operations with the substation um so respect that you know my the effort i'm not going to delay this you know not support it you know to keep us here all night long but i think that again this this idea is a little a little late you know to be quite honest with you but um we'll see

[05:11:15] what staff can come with you know in well in my time what is zoned currently at that location at loudon gateway is what's what's their zone right now for that for that area to refresh our memories i do not have the the map memorized but i will find it for you quickly so if i can get back to you before y'all close out okay i don't know if we can stop my time while he looks madam chair or not sure we can go to somebody else and come back to you for a minute and some seconds left i think it's going to take a while for him to look i'll i'll take that as you can come okay we stop mr put a minute and 30 seconds on mr sayings and we'll come back to him we'll go we'll keep going

[05:11:55] so we can so we can keep going mr letourneau yeah so i would um ask supervisor draconi if if she would be willing to accept the firmly amendment on the first one, simply that instead of future transit-oriented development, that we just change that to alternate development because transit-oriented development typically has a housing component, which is not permitted around that station because of the airport noise overlay district. So I just don't want to start that whole thing again and make people think we're looking at putting housing there.

[05:12:29] So what would you say in the language again? I would say something like alternative development or diversified development. And I second the motions, fine. Okay, and so just on that, yeah, I mean, the one thing I would say on this is to make sure that DPZ engages with Mr. Reiser because there have been opportunities for other things in this area, and for various reasons they haven't panned out.

[05:12:59] It's worth noting that a lot of the land that's most directly located next to the station is actually owned by the Airports Authority. It's not privately owned, and the Airports Authority has expressed interest in development to generate non-airport revenue, which helps them and could potentially help us.

[05:13:20] And I know that Mr. Reiser has had significant conversations with the Airports Authority about some of that. So that's probably the best opportunity to do something. We also, as you all know, that includes a vacant park and ride lot, the Dulles North Transit Center that we vacated, which is now just sitting there vacant next to the garages.

[05:13:41] And that area is the best opportunity. It would be great to get some sort of user in there that's not a data center, but that would activate the area a little bit. So, you know, I'm supportive of this effort, but I don't, you know, when International City, which is something that only a few of you would remember, probably you, Supervisor Umstead, and Chair Randall certainly, sold all of its land, that kind of ended the opportunity.

[05:14:16] I'm supportive of the second motion on substations. I think that with them being special exception now, we largely have the ability to manage this, but I wouldn't have any problem with that being also part of a potential policy statement or something like that in the future, just to give guidance to folks who are potentially thinking of bringing applications about what we're looking for.

[05:14:43] So I think that that's a good addition. thank you i just saw him not long ago i actually did the younger yeah yeah the younger not long ago i totally forgot about yeah in the national city though yeah logan yeah um thank you madam chair i totally agree with supervisor letourneau on um both of the major points he made one is i don't think there should be residential within that airport noise area and that's why we tried

[05:15:19] not to put residential near parts of the gateway station. I also agree with him on the, and with you Supervisor Tacroni, on the 500 foot distance from residential for any substation. That's all I God, thanks.

[05:15:43] Supervisor Bricksman. Thank you, Madam Chair. I'm happy to support the motions. This is my opportunity to ask questions on other stuff, though, as well? Sure, yes, I do a motion. Okay, so I feel like the item changed a little bit in that it used to do ZOAM, CPAMs, and then community planning, and now the CPAMs and the community planning are kind of together in a chart.

[05:16:09] Is that? So we've always broke, or at least in the past three years, broken out um community planning initiatives which includes both cpams that are non-historic and cpams and other things which are historic because both of those oh the historic okay okay and is loudon trails and waterways new it's you know it as the lpat potentially oh lpat okay okay so um what i'm getting at is i feel as if community scale solar has been in this chart like since i took office and um given that we really are facing a lot of power constraints

[05:16:46] in our county um i'm really concerned i really would like to see some sort of progress there and i know you're 12 people short and i know that you've got a workload that's unbelievable so my question is would it would it behoove us to take one or two of these projects and just hire a consultant to to get to work on them maybe just to do some preliminary work on them and then and then bring it back in given that we're it's really difficult to hire you know staff with the expertise that we need and and the workload that you just described so

[05:17:25] yes and i think once we get those task order consultants on board we'll have access to do that on an easier basis on this project and others as well okay okay um and when's that going to happen hopefully roughly the end of the year december january i'm not sure which but around that time okay and and we're still looking to hire um we're still looking to hire the 12 positions obviously yes and just to highlight that six of those are new positions this fiscal year four of them are due to promotions and things related to either moving into one of the new positions or other moving within the department so there's only two that are that are vacant

[05:18:02] because someone has actually left oh a lot of it's really just trying to fill up the things y'all been generous enough to give us right right okay okay um all right well thank you for that i'm i'm just i really want to start getting some solar projects on the on the ground thank you or on roofs or parking lots that's okay um yeah that that area that we it you can't put houses there anyway it's not zoned for homes you you can't put homes there but i do think in order to avoid any um confusion the wording's probably helpful but we couldn't put we wouldn't want to

[05:18:38] to and we couldn't put homes there anyway so but um yeah diversify is a good word because yeah i mean yeah yeah yeah as i'm saying i'm just responding to we you know no one we somebody said we wouldn't want to put homes that we can't put homes there anyway so so but the but the verbiage could

have been confusing so um yeah anyway i think i do would you like a closing oh madam chair so i have a response to oh mr sayings give him a minute and 30.

[05:19:05] so the reason i couldn't picture this in my head is because it's a mess um so it's a combination The designation of GI, IP, OP, and even part of it is RDP in that kind of general region north of the stations. But all commercial industrial zoning designations. Go through your acronyms again just for those, the thousands that are watching at home do not know.

[05:19:25] GI, general industrial, IP, industrial park, OP, office park, and RDP, research and development park. Yep. Can't be. Thank you. That's all you need for that minute and 30? I know, I'm just, Mr. Crane, would you like a closing?

[05:19:44] Yeah, I just want to say that I think the word diversified is great. It works well because what we're looking for is some visioning, some aspirational, long-term visioning for the area, whether it's office, like I said, entertainment, you know, institutional, educational uses, Something visionary that maybe is, like I agree, housing doesn't fit there because of the airport.

[05:20:12] And regarding the setback, I do appreciate the support for that. I think utility substations do have sometimes more of an impact than the data centers themselves. Thank you. Okay. Mr. Quarney made the motion. I seconded the motion. And Mr. Letourneau offered a friendly amendment that was accepted by the both of us.

[05:20:32] So all in favor to say aye. Aye. Any opposed? that motion will pass 9-0 wonderful let's go on to the next item um item number nine of which we also have a second motion but um i i actually would not accept it and i further move on that one so let's just do the item yes one clarification manager we approved supervisor to Crony's motion. Did we approve? Oh, I'm sorry. It was in information. I'm disregarding. Thank you.

[05:21:12] Okay. Item number nine. Hello, hello. How are you? Good evening. My name is Heather Dietz. I am the Acting Deputy Director with DTCL. I'm joined this evening by our DTCL Director, Shireen D'Arazio, our Program Manager, Aloysia Thring, and our Senior Traffic Engineer, Swathi Kandati. And we also -- That's a powerful table right there, so I'm going to say powerful table.

[05:21:35] Point of order, Madam Chair. Point of order. Can we direct the people at the table not to wish Caleb Kirshner a happy birthday? It was next. I object. I strongly object. It says happy birthday, Supervisor Kirshner. Overruled.

[05:21:52] Go on. You may do so. And we would like to extend her well wishes to Supervisor Kirshner on his birthday. She had it on her paper. That is fantastic. We are here in response to the past BMI for the Algonquian Parkway Corridor, and we have a presentation.

[05:22:13] If you would like us to go through, Madam Chair and Supervisor. Ms. Brickman, would you like the presentation? Hi. It's 26 slides. It's either me explaining it in my motion or staff giving the information is what I'm thinking, but maybe.

[05:22:36] Can you just get to them quickly? Yes, I will. Okay, thank you. Very briefly, north of Leesburg Pike, we studied in response to a BMI, the section of Algonquian Parkway, this is classified as a minor arterial, we are seeking to, this is, you can, thank you, I apologize, the ultimate cross section of this road

will be four lane median divided with no on street bike lanes, this was a, the red highlight there shows the area that we studied with the ultimate goal of a 10 foot wide shared use path on either side of the road.

[05:23:12] next slide please concerns that came from the board members in 2020 2022 a request for improved access and mobility the existing trails there are narrow and bumpy with sharp curves and challenging for those with disabilities or on scooters next slide additionally on algonkian parkway itself there are very narrow shoulders and fast moving traffic next slide we shared the data that shows crashes involving bicycles and pedestrians as provided to vdot you can see in the map there the locations and history. Key findings from the study is that more than half of the property of

[05:23:49] the trails is on HOA property with approximately 31,000 feet in the public right-of-way. There are inconsistent path widths, steep grades, curves, and the pavement has not been maintained to a very high standard. There are three pedestrian grade separated crossings. There are tunnels, 10 intersections that are signalized with crossings on Algonquian Parkway, and there's extended distance between those two as well as the need for ada upgrades at the crossings the assessment of the study considered connectivity constructability cost efficiency environmental stability reliability

[05:24:28] and safety we present four options to come forward in addition to some other recommendations the concept a is the completing the missing segments on one side of the corridor so if you see there in the yellow it is the corridor go ahead to the next slide the missing segments are shown there in purple which indicate where there is a gap of no path existing the proposed safety enhancements are shown by the green dots they include items such as trimming vegetation back updating repairing

[05:25:06] some of those curves and we'll speak to those in a moment but this first concept on one side missing segment is estimated \$12 million. Concept B widens the trail and fills in the missing segments along one side of the corridor. You see again in the yellow is the corridor. There in the purple is the missing segments on either end. And there's the widening. So there are significant sections, substantial number of sections that are perhaps five feet or less and that do not meet that 10 foot standard width of a shared use path. This concept also includes those proposed safety

[05:25:43] enhancements and is probable cost at 55 million planning level estimate. Concept C suggests the widening of the trail and filling in the segments on both sides of Algonquian Parkway which is consistent with the countywide transportation plan ultimate build. Fills in the missing segments along the north and south and it also widens those substandard section widths. This proposal comes in at approximately 105 million dollars to complete this full corridor of trail concept d

[05:26:18] which the study looked at was to construct a separate facility adjacent to the existing make it closer to the roadway and it's a 10 foot wide continuous path while retaining the existing path in its current location including all of the other enhancements included in the other options this is at 115 million dollars shows it right here with that parallel path the study analyzed those four with those assessment factors that we looked at as the circle is more filled out that

[05:26:54] means it is more in alignment with those feasibility factors so you'll see that concept c which will be the staff recommendation meets those to a higher level aside from cost you see there and then Concept D would be another one that meets a lot of factors. Concept B is lacking in meeting those factors, and so forth.

[05:27:18] Short-term safety enhancement, as previously indicated by the green dots, include restriping faded crosswalks, a lot of crosswalk enhancements, no turn on red signs, trimming that vegetation. This is estimated at \$830,000 and can be implemented in the near-term.

[05:27:35] Midterm enhancements involve reducing the grades, realigning the sharp curves, making sure that the crossings have ADA compliant curb ramps, and upgrading the push-button crossings, known as ped heads, at each of those crossings to connect to the trail on either side of Algonquian Parkway.

[05:27:52] This is estimated at 7.09, and it would be a midterm deliverable potential. This is a summary of all the options and their costs. Oh, you can go back to that last one. That's okay. And this stacks them against with short-term and mid-term totaling, and it's right behind the balloon, but I think it's, thank you, 7.9 million.

[05:28:15] And those will be included in the recommendation along with concept C, which is widening on both sides for 105. So if you go to the next slide, the staff recommends pursuing further evaluation of concept C, which is widening on both sides, filling in the missing corridors and doing the near-term improvements, as well as endorsing the planning level cost estimates for short-term and midterm safety enhancements for 7.92 million dollars in a future capital improvement program

[05:28:51] budget cycle thank you thank you um uh miss briggsman uh do you do we need let's do let's do just a round of questions before we go to a motion okay that'd be great yeah okay just to be clear on on the recommendation number two that is not putting anything in the cip it's not allocating

[05:29:24] dollars it's just basically setting it forth for the board to consider in the capital improvement program and there will be a full board vote on what gets into the capital improvement program in fy 27 or fy 29 yes ma'am okay so just i just wanted to make that clear to my colleagues that this is not trying to it's just maybe a future years where we have a lot of future years projects although i i do think that um number two would really improve a lot of the safety issues that

[05:30:03] we're having over there and then um could you explain what what you meant about um bringing it up to ctp standards when we're talking about these improvements certainly just that the ultimate future build for the countywide transportation plan of all roadway network and multimodal projects ultimately calls for a 10-foot shared use path on either side of algonquian parkway in this area right and although a lot of this is on could be required for us to get either easements

[05:30:36] or permission work with hoas and those sorts of things yes in fact that we would have to do that and that's why we have to have further evaluation and those sorts of things but in fact the county and this is part of the reason i started looking into this because i got frustrated that the county was identifying inadequate inadequate paths that we don't maintain that we didn't build as facilities for the community right so if you look at our ctp these paths that are crooked and

[05:31:10] and all that basically we identified it in our own documents as a public facility but it's really not up to standards correct that is correct right so the idea is that we would bring something we're already identifying as a public amenity up to county standards um what are my other questions um in the main difference between c and d and by the way staff you did say to me in our briefing that adding a further evaluation of d would not necessarily add a bunch of extra work correct

[05:31:49] correct right so but the idea behind d is that we are actually separating the faster moving traffic like bikes and maybe motorized scooters from the more like the dog walkers and the strollers and the and

the pedestrians or joggers it provides that opportunity it provides that separation i'm not necessarily married to one or the other but i would like to see further evaluation thank

[05:32:21] you uh mr crony okay thank you chair randall and thank you heather and everybody um so are we proposing in um in these concepts doing improvements in fairfax county yes that is included in the option that goes to the end of that red line on the first one have we reached out to fairfax county at all to ask if they would be willing to collaborate on this project yes they were one of stakeholders that we were in discussion with during the study phase. So they

[05:33:00] recognize that we are conducting the study and when... No, I mean regarding paying their portion of the trail. We did not go into that discussion because right now we were just looking at the study. We were just looking at the feasibility of sidewalks and trails along Algonquin Parkway. So we did not talk about the details of funding or anything like that okay shereen go ahead yeah no we can look into those when we further refine a way ahead and come back um we can consult with them and see yeah i i have

[05:33:36] kind of a problem using taxpayer money for fairfax county um the second one is um so i see that 231 missing segments rank higher quite the same way no i do i do it's our taxpayer money come on no i do and i i yes um 231 missing segments rank higher than the 19 missing segments along algonkian parkway i assume this is for one not two right two two doesn't have so i just some of these segments are lower on the list you know we have a prioritization list now for the sidewalk and

[05:34:15] trail program and for the intersection improvement program and i see some of these i assume that's in number one for concept c and d are kind of jumping the list um in our priority right for the intersections and the sidewalk and trails am i correct in that yes this was looked at in response to the bmi as a corridor and they are segments that are also included in the stp prioritization plan at a lower level ranking. Okay. But it's not for number two though, right? Number two is totally separate from that. Okay. Okay. That was my question. Thank you. Yep. Good. Yeah. Okay.

[05:34:55] Thank you. Mr. Letourneau. Yeah. Supervisor Tacroni, they're, they're laughing because I'm sure you've been through the Cox Farm roundabout in Fairfax County, which was paid for by Loudoun County. Thanks to me, but, uh, but it was all loud and traffic. So that's, you know, anyway, I wasn't on the board then, so.

[05:35:13] I know. Oh, your constituents would have wanted it. Trust me, they used Braddock Road. Anyway, yeah, I had some similar questions. Particularly, I never understand in these things how the Sidewalk and Trails program ranking works with some of these corridor improvements.

[05:35:30] So the highest-ranked missing link in this corridor is ranked 231. So by definition, we would be skipping the line if we were to prioritize it. So if we were to, at some point, fund the higher level of project, what do we do with that inconsistency?

[05:35:51] Do we just skip, we're saying we're skipping the line because it was part of a broader corridor? I mean, I had the same thing with the Dusty Drive program, as you know. We didn't get some of that stuff done because we couldn't skip the line. So this work is for a study.

[05:36:12] To take the outcome of this work and bring it into a CIP discussion is an expanded discussion. So we would go through all of that type. So all the 110 or 15 or whatever it is for each of these things is just a high level if you did absolutely everything that's in the study.

[05:36:31] Not a proposal for what we would do to implement the findings of the study. So if I can assist, Madam Chair.

[05:36:49] So this is an issue for the board to discuss. This happens on a semi-regular basis. It doesn't happen all the time, but it does happen on a semi-regular basis where we have conflicting priorities from the board, where we have these projects such as the intersection improvement program, such as the sidewalk and trails program, where we've been asked to rank segments of sidewalks and trails that are missing, as well as intersection improvements.

[05:37:13] uh we do have a number of these types of studies that have come through board member initiatives and we do end up bringing them back to the board and it is it is fairly frequent if not every single time where we have a very similar motion where it's sent to the cip to be prioritized and it is we take that as direction of the board which is different from say direction to just sends it to a future fiscal years category.

[05:37:41] So this would be something that we consider. So the answer to your question is yes, we would consider it. All right. And then Supervisor Bristman, did you want to fund the 830, which is just the first round of safety, earlier? And then for staff, to what extent are any HOAs responsible for some of these repairs since it's on their property?

[05:38:04] I got that in under the buzzer, hopefully. Bless you. Excuse me. Let me have a tissue, please, Mr. Turner. So the answer is the same for the 830. We need to find a place for it. Excuse me.

[05:38:19] And I need to assess outside of right now the answer to the rest of your question about what the HOA is responsible for. I don't know. Come back on that. Mr. Sainz.

[05:38:36] Thank you, Madam Chair. Yeah, I'll kind of piggyback on the HOA situation because I do recall that Ms. Brisbane had another initiative. and some great ideas and thoughts, but then we had to reach out to the HOA, and the HOA was like, thanks, but no thanks.

[05:38:53] I can't remember what we did, but how we moved forward in that. But, yeah, to the point about, because I think we have two or three different HOAs with the Countryside Proprietary, Cascades, and then possibly dealing with Lowe's Island as well on some of these segments.

[05:39:09] So I'll definitely be interested in seeing how those conversations go if we were to move forward. And the other thing is, in one portion of this segment from where Countryside Boulevard and Algonquian Park meet up, and if you go right at that stop sign, well, I think there's a light now, but when I was living there, at one point there was no stop sign, then there's a stop sign, now there's a light.

[05:39:34] If you go right heading towards Algonquian Elementary School, there's a segment where there's a lot of space from the trail to the street, the grassy area and gravel but if you go further down when you just get past potomac falls high school that area pretty much disappears you just have the trail but not much space um to do say the the second um uh trail that i think miss brisbane is proposing so how would you

[05:40:07] how would you work that what are your thoughts on that part can i help clarify what he's talking about no you may not okay unless he asked you to clarify it which he has not before that is the reason we thought what we did is at a very high level of research that we have done for the concept c and d

and to go in depth and actually evaluate what would be the land that would be required to maintain the standards is something that we have to go in detail break the corridor in parts and

[05:40:44] then do a holistic research on it and then come up with the details okay and then that holistic approach you would have to look and see which HOA has control who would be responsible and say okay hey if we were to fix this up would you maintain it moving forward and all that stuff that you're saying you would have to do? Yes we have to go through the deeds to look into what is written in each of these deeds and also we have to talk with the HOAs and make sure they meet the VDOT standards because VDOT will not maintain if they are not to the VDOT standards and county has to

[05:41:20] come up with talking with the HOAs or the property owners to make sure these public easements are maintained by the general services. Before my time runs out, so right now the motion, if we were to pass it, you guys will go back and do some more homework and study and come back before anything was enacted.

[05:41:37] Is that correct? Correct. Yes? Yes. Okay, thank you. Ms. Umstead. Thank you, Madam Chair. I would really like to support this, and I absolutely understand why Supervisor Briskman is so interested in this.

[05:41:54] I just look at the final cost for either C or D, and we're over \$100 million. I don't know where we're going to find that kind of money, and if we're not going to find that kind of money, Then I don't know why we would spend \$7.9 million on planning for it.

[05:42:21] I had a conversation with the town of Leesburg not that long ago in which they mentioned a top priority for them was a \$300 million project. I told them, I just don't see us ever having that kind of money.

[05:42:40] This is less than that, but it's significant. And we've got Supervisor Letourneau wanting money to improve the Route 50 corridor. I don't think I can support it at this point, and I apologize to Supervisor Briskman because she's working hard for her district.

[05:43:00] But for me, it's too expensive. Thank you. Mr. Vice-Chair Turner. Thank you, Madam Chair. I really like this project. I think it's pretty cool. I used to live on Cascades Parkway. I used to ride my bike and jog up and down the Algonquin Parkway, and it's pretty dicey in a lot of areas.

[05:43:20] I have no problems with recommending a study. Just to clarify, option D, which is \$115 million, incorporates option C, which is \$105 million. It's not additive. It's not \$220 million for option D.

[05:43:39] It's \$115 for option D, which includes everything in option C for the \$115 million. Correct, but I'm not sure that it includes everything, but it is a standalone new trail. It doesn't touch what's going on.

[05:43:54] I know that, but do we need to appropriate \$105 million to get option C completed and then do option D for another \$115 million to have a parallel trail on either side of the inner and outer loop? It's \$115 million for everything in C, plus a parallel trail on either side of the inner and outer loop.

[05:44:16] It's a two different alignment. Concept C is widening the existing facilities to 10 feet to align with the CTP standards. For \$105 million. Plus addressing the missing segments on the endpoints on both sides.

[05:44:34] Right. So that's \$105 million. Right. And then the 115 is concept D, which is a separate alignment maintaining the existing condition of the paths where it is today, leaving that alone and then

building a new path on both sides so it's 10 feet wide.

[05:44:52] So it is additive. So the total cost, if we go with option D, is \$220 million. Option D is? The way I look at it is? Option C needs a lot of work. I mean, that's the existing path, and option C is all the work that we need to do to bring it up to CTP standards.

[05:45:11] So are you telling me option D is in replacement of option C in Lua? So option C solves a problem, giving you multimodal. Option D gives you an expanded solution but leaves the existing in place.

[05:45:32] Okay, I'm running out of time. It's either or. I'm still not sure I got a clear answer to the question. The other question I have, which is a big one, is my team's been told repeatedly that you cannot use county taxpayer dollars to improve private land or private HOA land.

[05:45:47] So is the intent to buy the HOA land so the county owns it? Because I heard a lot of work with HOAs and private owners to fill in missing links and improve land, and everything I've been told is we can't do that. And I agree with Supervisor DeCrony, I don't want to spend county dollars to fix up Fairfax County 1.8 miles.

[05:46:05] It would involve the acquisition of certain properties on the HOA. Okay. Thank you. Back and forth.

[05:46:24] If you go to slide 10, slide 10, which is the missing link, slide 10 is mostly Fairfax County. Most of the missing link we're talking about is Fairfax County. And, Mr. Cronin, to answer your question, Fairfax County is looking at a \$300 million shortfall in their budget.

[05:46:41] They're not going to toss in any money to do this. That is just not going to happen. Slide five is interesting in that it goes through the traffic data crash hotspots, crash meaning pedestrians or bicycles, not car crashes.

[05:47:02] I guess for me, a couple of things. One, when we do a study, we can say we're doing a study and we can say, you know, that we're not trying to actually build the thing in the end.

[05:47:17] But the truth is, if there's very few times that we do a study, people don't come back and say, well, we spent all the money to do the study, so now we're going to do it. I mean, we're not doing a study. We're doing a study for a purpose. And if I'm not going to support that purpose in the end, I'm not sure I need to support the study.

[05:47:34] And that's kind of where I'm at right now is I'm listening to these costs. One, I don't want to do anything in Fairfax County. I don't think your situation was the same thing at all, at all. That's the first thing. Secondly, I'm looking at the hotspots on slide 5.

[05:47:51] Yes, I see them, but unless you're telling me that people are getting seriously injured or dying, I'm not sure I'm doing this when I have a Route 50 that needs to be fixed where people are getting seriously injured or dying, or Route 15 where people are getting seriously injured or dying. I'm not sure I want to put that CIP money in it.

[05:48:10] I don't quite know what you mean by safety enhancements. I mean, like I said, what are the safety issues that are to that degree right now? I am willing to have a discussion about the short-term safety enhancement, the 830,000.

[05:48:30] I'm willing to have that discussion, but I'm not willing to have the discussion about, the problem is I know I'm not going to support this in the end. So if I'm not going to support it in the end, and I think we do this for the purpose of saying, we studied it now let's do it that's that is why we're doing it in the end i don't believe i would support it in the end i don't believe that these safety enhancements are in in this in whatever economic um place we're walking into with as much unknown as we're walking into it this is

[05:49:09] not a good use of the of money right now maybe a different time but right now so i can't i can't support anything but the short-term safety enhancements would you like uh there was another motion would you like to make a motion ms i would thank you madam chair um i move the board of supervisors direct staff to further evaluate concept c and concept d of the algonkian parkway multimodal feasibility study as the recommended multimodal alignment on along algonkian parkway from Route 7 Atlantic Boulevard in the Algonquian District at the west end of routes at the west

[05:49:47] end to Route 7 Fairfax County Parkway at the east end in the Fairfax in Fairfax County and endorse incorporating the proposed short-term and midterm safety improvements in the amount of \$7,920,000 in a future capital improvement program budget process for consideration and prioritization.

[05:50:09] I further move the Board of Supervisors direct staff to evaluate an alternative alignment as part of concepts C and D to include on-street bicycle facilities where viable. Sir, motions may answer a second on the motion. This motion will die for lack of a second.

[05:50:29] I thought you liked the project, Mike. You can't even second it. Okay, so make it friendly. Whoa, whoa, whoa, whoa, whoa, whoa, whoa. We're not doing all this until there is a... We cannot have a discussion on the motion until there's a second on the motion. This motion will die for a lack of a second.

[05:50:47] Thank you very much. This was the motion from the package. The motion from the package is just... Oh, okay. Can I make the motion in the package? You just made the motion in the package plus more. She made the motion in the package plus.

[05:51:05] What she actually was asking was can she divide the motion, but she didn't do that. So she made a motion, and I kind of gave instructions earlier. Maybe you don't want to do that part, but then you did. And so you didn't get a second on the motion. Madam Chair, I'd like to make a motion.

[05:51:21] But if you want to make a motion, Mr. Turner, make a motion. Thank you, Madam Chair. I move the Board of Supervisors and direct staff to endorse further evaluation of Concept C of the Algonquin Parkway Multimodal Feasibility Study as a recommended multimodal alignment along the Algonquin Parkway from Route 7 slash Atlantic Boulevard in the Algonquin Electric District at the west end to Route 7 slash Fairfax County Parkway at the east end in the Fairfax County, and endorse incorporating the proposed short and midterm safety improvements in the amount of \$7,920,000 in a future capital improvement program budget process for consideration and prioritization by the Board of Supervisors.

[05:52:00] Motion is made by Supervisor Turner, seconded by Supervisor Bricksman. Mr. Turner, would you like to speak on the motion? Yeah, just very briefly. I think that option C, concept C, is a viable concept for that section of Algonquian Parkway.

[05:52:16] it's heavily traveled. I think further refinement of the study to answer some of the questions about HOAs and private property missing links can all be incorporated in that. I don't mind moving the

\$7.92 million for the short and midterm improvements into the capital improvement program. That will simply, they'll probably go into future years and simply trigger a further discussion in the CIP process about whether or not that's got priority for funding. But they are Certainly, if you look at the short and midterm improvements, it's not filling in missing links.

[05:52:50] It's not any high-cost items. It's actual, I think, improvements of the existing trail. So I don't mind moving that into the CIP process. I think this is a reasonable proposal for that segment of the road. Thank you. Thank you. Other discussion on the motion, Mr. Crony?

[05:53:06] No discussion. I'm wondering if we can divide the motion. There's no motion. That's a friendly. Well, you want a friendly? Divide it for the short and midterm. So a friendly is granted, and I mean a request for division is not a friendly, and tell us what you're dividing.

[05:53:24] Tell us where. The city is separate from the short and midterm safety improvements. So read what you would like to have there, what part of the motion you want to have there. Okay, so period after Fairfax County, and then endorse, and then the separate one would be I move.

[05:53:41] So just say period after Fairfax County, and then so from there on the rest of the motion is divided. Incorporating the proposed short and midterm safety improvements in the amount of \$7.9 million in a future capital improvement budget process for consideration and prioritization by the board. I need to put your microphone closer. Oh, so it's just period and Fairfax County.

[05:53:59] So at the end of Fairfax County, that's one motion. And then the other one would be the second one. The next motion starts with the word endorse. Yes. Okay. The division of the motion is granted and automatic. And so we are now discussing the first part of the motion.

[05:54:15] If you have not spoken on the motion yet, which was the first part of the motion, from the words I move to at the east in the Fairfax County. That's what we're discussing right now. That's the motion on the table right now. Mr. Crony, would you like to discuss that part of the motion?

[05:54:32] The second part, right? No, ma'am. The whole thing? No. No, the first part. From the words I move to the words Fairfax County. Oh, I don't have anything. I mean, I'm not going to support Concept C because of the price tag and the fact that it has Fairfax County.

[05:54:51] But I would be happy to support the short and mid-term safety improvements. That's my comment. Okay. Yeah. Okay.

[05:55:07] I think I got what you're saying. I think. They're supposed to be two separate motions. Yeah. Well, it's not supposed to be anything. It says and, so that means it's one motion. but now you've made them two separate motions. So I think I got what you're saying.

[05:55:23] - Thank you, yeah. - All right, so we're discussing the motion from the words I move to at the east in the Fairfax County. That's what we're discussing right now. Mr. Sains. - All right, thank you. So can we get clarity for this now motion that's divided, so I move to the Fairfax County.

[05:55:42] Clarify that would be, if this was approved, that's just directing staff to go back, do some more homework and research on Concept C, then you would come back and present that, and then we'll vote either yes or no to move it forward. Is that accurate? Yes, and prior to that, we would come back with the cost to do that study also.

[05:56:01] Okay, so that's going to be my next question. Do we have the amount for the cost for the study? So you're saying if we were to vote for the first motion, you would go back, find consultants to work with, figure out a cost amount possibly for the study. Then once you get the study amount, come back and say, here's the study amount for concept C, correct?

[05:56:19] Is that correct? Okay, and then for the second... We're not there yet. Oh, okay, sorry. All right, well, I guess we'll have to vote for this and then come back and have a dialogue. Just for, yeah, to be clear what we're doing here. Okay, and then just to clarify, for concept C, we would still need to go work with, talk to HOAs.

[05:56:41] Yes. All right, okay, thank you. Mr. Letourneau. Yeah, I think, I don't know how to vote on this yet, honestly. I take the chair's point, which is that if you don't think you're going to support it ultimately, why even go down the path. I think it's very hard for the board to figure this out on the fly up here. I'm hesitant to just drop a bomb on the conversation but this does seem like the type of thing that would be well suited for a TLUC discussion because I'm not clear on or at least I don't think that I think the board's kind of all over the place a little bit on the differences

[05:57:17] between some of these and um the you know sort of the value proposition doing the study and getting more information and figuring out something for some of these questions is not going to change the fact that it's still a hundred and something million dollars probably to fix it and i think some some of us anyway are probably having some heartburn over that number so um so i'm not sure i'm supportive of the second half but i'm not sure where i am on this and i think personally it would welcome a little bit more discussion and time to even get to that point okay miss

[05:57:55] um brixman thank you madam chair um so just some points of clarification the the 115 and 105 are not additive they would be it would be one or the other and it would be either price they would they would not be additive um secondly the majority of this is not in fairfax county there's 0.8 miles in Fairfax County the other purple part of it is Loudoun County I think it's also if this

[05:58:29] were to go into the CIP I know folks are having heartburn over the cost of C or D but I am not going to be I don't have heartburn over having this be years out you know after the intersection gets done this that and the other I'm more concerned about the short term and midterm and then keeping alive the larger project so to that degree madam chair i'd like to make a motion to table table what this both motions well you can't make a motion to table both motions only talking about one motion i'll make a motion to table to table with the from i moved to fairfax county yes

[05:59:07] you want to table to a date certain or you want to table the indefinitely uh i would like to table it to a date certain okay do you know what that date is i well you know the agenda you wanted to come back here not to tluc you want to uh well i don't know that i can make a motion to send it to tluc because that would be out of order i believe only a motion to table i can do right now no that's not true okay then i make a motion to send option the first motion to tluc okay motion's been made to send from Imu to Fairfax County to TLUC, second by Mr. Letourneau. Do we need to discuss

[05:59:46] this motion to send this to TLUC? Okay. All right. All in favor of sending this to TLUC, please say aye. Aye. Opposed? No, because I'm not voting for this no matter what. So so that motion will pass 8-1 all right now the second part from endorse to prioritization of the board of supervisors are you trying to send that to telec as well you want to talk about that right now i think we can talk about that right now okay so mr separate the motion so since he separate the motion

[06:00:23] it's still at this point her motion so let's start with the words and endorse incorporating to the to the prioritization of the board of supervisors that's the motion we're discussing right now mr crony i support these short and midterm safety improvements so thank you yeah no comments anybody else want to talk about this motion miss miss brixman thank you madam chair and thank you colleagues i let me just apologize i clearly didn't do enough um i didn't have enough conversations and educate my colleagues

[06:01:01] enough about this project. It is a big project, and Chair Randall did warn me that folks were going to, that this was too much to do on the fly on the dais. I am a very strong believer in working to convert our car-centric community to a community that has multimodal forms of transportation, and I think this project would really be a flag in the ground that we're going be looking to do this the area is not safe for cyclists i see cyclists on that road every weekend

[06:01:36] and my heart sinks and i fear for their lives trying to bike on the existing hoa paths is not safe for anybody it's difficult it's dangerous and you endanger kids going to school kids going to practice kids going to the pool people trying to use those paths which rightly they should be allowed to use those paths for other reasons. I honestly, since I moved here in in 1999 to now, the amount of people I see doing outdoor recreation is not only happening because, in my opinion, is not only happening because our county has grown by leaps and bounds of population,

[06:02:15] I think it's happening because people want to get outside. And I think that our communities weren't built for that and i'm trying to work really hard to retrofit basically the the midterm and short-term safety improvements are going to go a very very long way to improving these opportunities for the community and i don't think it's just for algonkian i will work really hard to get that section to fairfax complete because nobody in loudon can get over there to use the trails on Route 7 that have just been completed that go all the way to Tyson's Corner. They can't

[06:02:51] get on the bike paths to go to Reston because of that .8 miles, and that .8 miles is life-threatening if you're trying to do it on a bike. I agree. No, we shouldn't pay for all of it, but maybe we should make a contribution because it's going to be majority. But anyway, that's years and years away in my opinion um i i would really hopefully i can say i appreciate support for the short and midterm improvements and i really appreciate staff hard work on this i know that i had so many questions and we've really been working on this for i mean i went on the bike tour in october of

[06:03:28] 2023 so we've been working really hard on this and i appreciate all of your support and all of your help and answering all my questions and again this is only going to be going into consideration for the cip so we are going to have another opportunity to set our priorities and what we want to go into the cip and this may or may not make it but i'm glad it's going to be on the list thank you just because ms briggsman mentioned fairfax county that time would you please put up slide number nine all right maybe i don't understand how to read these slides i'm going to

[06:04:04] freely admit that but so you're saying that the part of the fairfax county is less than Yeah, that's 0.8 miles, the whole corridor is 6 miles. No, I don't mean that, I mean the missing links. There's more missing links and there's more missing segments in Fairfax County than in Loudoun.

[06:04:21] There's more purple in Fairfax County than in Loudoun. Is that not correct? The purple indicates there's nothing there. We didn't rate-- It's a missing link. We didn't rate missing links in-- Okay, what, okay, I'm pretty concerned.

[06:04:37] I'm pretty confused with what I'm looking at at this point. I am, because I thought the purple was missing links. It is. You're saying yes? Yes. Ms. Frickson, I'm going to need you to stop. I really am. The purple indicates missing links.

[06:04:52] Correct. Then there's more missing link in Fairfax than in Loudoun, is it not? Correct. And this slide is about the missing links. Correct. Okay, so what I said was completely correct. Okay, listen.

[06:05:15] I'm sorry. I just don't see me voting on this in the end. I just don't see me voting on this amount in the end. This is a lot of money, and I'm not saying it's not dangerous, but when I'm comparing Route 50, when I'm comparing Route 15, when I'm comparing other, I just don't see me voting on this.

[06:05:35] Ms. Brixman, are you willing to have this in the six-year-out program? Madam Chair, this will be in either six or eight years out. Well, I'm asking that because, let's face it. I'm not looking to jump the line at any CIP. A lot of times there is a whole lot of, well, let's do it now.

[06:05:53] We get that a lot. - Yeah, it's going to be in the out years anyway, already. - All right, would you like a closing, Mr. Crony? - No, thank you. Thank you, Steph, that's what I have to say. Thank you very much.

[06:06:09] - All right, so the motion was Mr. Turner's initially, but it was split by Mr. Crony, so it becomes Mr. Crony's motion seconded by Mr. Turner in this way.

[06:06:27] And that is from endorsed to prioritization by the Board of Supervisors. That's what we're voting on right now. All the people who say aye. Aye. Opposed. Nay. Nay. So that motion will pass. Did you say aye?

[06:06:43] That motion will pass 7-2. Okay, I think that might be it. I think that might be it. Yeah. Do we need a break before we go to closed session? It's going to be a long – we have two closed sessions, and they could take a while.

[06:06:59] So let's go on and take at least five minutes.

[06:12:01] I do. Go on, guys, so we can get out of here.

[06:17:13] Yes, please. You have it. Okay, let's go. I move that the Board of Supervisors recess this public meeting and enter into a closed session pursuant to Section 2.2-3711A3 of the Code of Virginia to consider the acquisition of parcels of property for public use in the Sterling District.

[06:17:33] I further move that the Board of Supervisors recess this public meeting and enter into a closed session pursuant to Section 2.2-3711A7 of the Code of Virginia to consult with legal counsel pertaining to actual or probable litigation pertaining to the courthouse in the Leesburg Election District.

[06:17:50] Do you want to second that, Vice Chair? Second. Discussion on the motion. Seeing none, all people say aye. Aye. Any opposed? That motion will pass 9-0. We are in closed session.

[06:25:00] Would you please, Mr. Turner, would you please

[06:52:51] read us out of closed session? I move the closed session be adjourned, that the Board of Supervisors reconvenes this public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting. Motion is made and seconded by Ms. Bricksman.

[06:53:09] Discussion on the motion. All in favor to say aye. Aye. Any opposed? Everyone please affirm. Affirm. There we go. Affirm. Affirm. Affirm and happy birthday. Affirm. To Caleb. Affirm. Affirm.

[06:53:25] You're closing for my picture. You know what? Keep that up there. Come on. Everybody, come over here. Just keep it up there. Everybody, come over here. Who are you kidding me? This is the most ridiculous thing I've ever done.

[06:53:42] I'm 50 years old. Get over here. Get over here. It's 50 years old. Get over here. No. I wish you were 50. Come on. Get over here. It's 50. It's 50 years old. Get over here. Hey, hey. He came to your party. I've got to make a motion.

[06:54:17] Right. And I affirm as well, by the well. Do we have a motion still? Yes. Mr. Sains.

[06:54:33] Yes. Oh, we have a motion. Yes. can I make my motion you can make a motion okay I move that the Board of Supervisors direct staff to prepare a resolution to initiate condemnation and quick-take proceedings as required pursuant to Virginia code 15.2 - 1903 B for the purpose of approving the proposed public use and acquisition of property located in the Sterling election district for cons for construction of the Washington and Old Dominion W no D trail overpass project over sterling boulevard i further move no i further move the board of supervisors direct

[06:55:08] staff to advertise the resolution for the november 12 2025 public hearing second second that's my second that's my second it's my second just so you know all right discussion on the motion i'll be very brief and just say this is uh one of the next steps in the very unfortunate lengthy process of building this overpass over the W&E trail at the Sterling Boulevard, but this is a necessary step to continue in the process of making this project come to fruition.

[06:55:40] Thank you. Colleagues? I would quickly say that I have seen at times some criticism of Mr. Sains about not getting this done. I will have to say Mr. Sains has been working on this since the moment he stepped on this dais and he's never stopped working on it and it has taken longer obviously than anyone would have wanted for for a number of reasons but he has never stopped working on it talking about it and informing all of his colleagues who joined him on the dais about this project and so I kind of want to put that

[06:56:15] in the record. Any closing? Any closing? No let's vote and get home. Mr. Sainz made the motion. I second the motion. All the people say aye. Aye. Any opposed? That That motion will pass 9 to 0.



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